Canadian Citizenship — Pre-1947

Preface: Standing on Guard: A message on Value and National Purpose

In Canada, we speak frequently of reconciliation—a vital, necessary reckoning with the historical and ongoing wrongs committed against Indigenous peoples. This memorandum isn't about trading upon that reckoning, nor does it seek to diminish it in any way. It borrows the underlying method: the fundamental requirement that a country needs to reckon with the hard truth of its past and reject the comfort of convenient blindness.

To understand the danger of looking away, we must confront the legacy of Dr. Peter Bryce. In 1907, as Chief Medical Officer for the Department of Indian Affairs, Dr. Bryce presented a meticulous, evidence-based report directly to the federal government. He proved that institutional neglect and severe overcrowding in residential schools were driving appalling mortality rates among Indigenous children.

The response from the state was not reform, but active suppression. His funding was cut, his vital research was blocked, and he was forced out of the public service. When he independently published his findings in 1922 under the title *The Story of a National Crime*, the nation chose the comfortable option—it looked away.

The lesson for modern Parliamentarians is absolute: the damage does not dissipate when the state closes its eyes; it compounds. When policy failures are met with indifference rather than active stewardship, generations of Canadians are harmed.

To honour what Indigenous peoples have demanded of us is to hold this entire country — its public institutions, and its lawmakers — to Dr. Bryce's high standard. It is one thing to speak of values; it is quite another to build our policies around them.

Canadian soldiers paid the ultimate price defending our freedoms. They stood on guard for us. The least we can do in return is to stand on guard for them.

Truth matters. Review any authoritative historical text, walk the exhibits of the Canadian Museum of Immigration at Pier 21, or consult the Library of Parliament, and you'll find the same sentence repeated as settled fact: Canadian citizenship began on January 1, 1947.

No, it did not. Canadian citizenship began with Confederation — and the proof is not in advocacy but in the state's own record: its statutes, its Orders in Council, its censuses, its courts, its passports, its death certificates.

January 1, 1947, was not a beginning. It was a line drawn for exclusion — not inclusion. The consequence is no antiquarian dispute: under the government's current position, the 111,000 Canadians who died in the two World Wars — the very people who built and secured this nation — were never citizens at all. They fell as legal ghosts, in the uniform of a country that now excludes them. That denial was engineered by racists, Mackenzie King foremost among them.

The disenfranchisement never stopped. In 1945–46, the state stripped 3,964 Japanese Canadians of their status, rendered them stateless, and deported them — 700 were children born in Canada. This past June, approximately 100 Canadians had their citizenship suspended and their passports revoked by email, without due process. As Parliamentarians, did you know this? If so, what have you done about it? If not, you now know. And you now know about Dr. Peter Bryce. Silence should not be an option.

I wrote in my book on Lost Canadians: "*Knowledge surrounds us, and it's free for the taking*." The memorandum that follows is the evidence. Read it in its entirety, and you'll discover a Canada that has been weaponizing citizenship against its own people since Confederation — all the while choosing blindness.

Memorandum

TO: Members of Parliament; Members of the Senate; Officials of the Department of Justice; Officials of Immigration, Refugees and Citizenship Canada

FROM: Don Chapman, Founder of the Lost Canadians; Author, *The Lost Canadians: A Struggle for Citizenship Rights*

DATE: Thursday, September 17, 2026

RE: The Pre-1947 Existence of Canadian Citizenship: An Evidentiary Record

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EXECUTIVE SUMMARY

The Minister's Own Words

I agree with Prime Minister Carney's important statement: "*The protection of citizens is the most fundamental responsibility of government*."[1] This memorandum takes him at his word. The pages that follow will measure his government — and every government — against that standard. They will demonstrate that the orthodox account — that Canadian citizenship began on January 1, 1947 — is false. In fact, that narrative is contradicted by the very Minister who introduced the Act.

[1]Prime Minister Carney, "Prime Minister Carney highlights new measures to combat antisemitism and support Canada's Jewish community" (news release, June 1, 2026, Toronto, Ontario).

On October 22, 1945, Secretary of State Paul Martin Sr. rose in the House of Commons to introduce Bill No. 20, *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* (enacted as S.C. 1946, c. 15). He told the House:

> "It should not be concluded from this that the bill in reality makes any sweeping change or that there has not previously been any such thing as Canadian nationality. Despite what one often hears to the contrary, there has been a Canadian nationality."

Martin was equally explicit that his bill was "in reality a comprehensive *amendment* of the Naturalization Act" — *a codification, not a creation*. Six months later, on May 2, 1946, Martin legislated that naturalized citizens who returned to Germany or Italy "will be excluded."[2] The Minister's own words concede that Canadian nationality existed before 1947 and that the Act recognized rather than constituted it.

The statute commonly called the "1946 Citizenship Act" was never so named. Its true title — *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* — describes a statute that consolidated and codified existing law. It did not create it.

[2] House of Commons Debates, 20th Parliament, 2nd Session, April 2, 1946, Vol. 1, p. 503 (Martin).

Right or Privilege?

At the heart of this matter is a single distinction: **is citizenship a right or a privilege?**

- **A right** is inherent to the person, protective against the state, and not subject to arbitrary withdrawal.
- **A privilege** is granted by the state, held conditionally, and revocable at the state's pleasure.

The government's position — that citizenship is a "product of statute" with "no meaning apart from statute" — treats citizenship as a privilege. This is wrong in law, in history, and dangerous in consequence. If citizenship is a privilege, a future government could redefine, suspend, or revoke it at will. The "product of statute" logic gives it the legal vocabulary to do so.

The False Dichotomy

The government's central counter-argument is that pre-1947 Canadians were "British subjects, not citizens." This is a false dichotomy. For those who qualified — Canadian-born, naturalized, or domiciled — Canadian citizenship and British subjecthood were simultaneous statuses from Confederation to 1977, a full 30 years *after* the 1946 Act came into force. The two labels described different facets of the same allegiance: membership in the Canadian body politic, and membership in the wider imperial community. One could be both at once.

Moreover, not everyone in Canada was a British subject: Chinese Canadians were denied recognition of their status, while Indigenous peoples held a distinct *sui generis* status. The "British subject" label was never universal. The government's binary fails on both sides.

Nor can the government dismiss civil law as irrelevant to citizenship — for to do so is to concede that the civilian tradition has no voice in Canadian identity, and that Quebecers hold their citizenship on different terms than other Canadians.

The Evidentiary Record

This memorandum assembles the full evidentiary record confirming Martin's admission, and that Canadian citizenship and nationality existed as a legal status with attendant rights and obligations from Confederation (1867) forward.

- **The Constitutional Foundation.** The preamble to the British North America Act, 1867, the "living tree" doctrine articulated by Sir Robert Borden and recognized in *Edwards v.*

Attorney General of Canada, and Justice Cannon's judgment in the *Reference re Alberta Statutes* (1938) all locate Canadian citizenship within the constitutional order itself.

- **The Statutory Record.** The Hansard records an early and foundational use of "citizenship" in federal legislative debate — Mr. Thomas Mayne Daly, introducing Bill No. 12 on March 16, 1871, explained that its object was "to confer the right of citizenship on all those aliens who had been residents in the Country previous to Confederation, on their taking the oath of allegiance." The Immigration Act, 1910 defined "Canadian citizen" and, in section 41, barred deportation of Canadian citizens — a substantive protective right. In 1916, Minister of the Interior William James Roche, writing in the official government publication *Canada West: The Last Best West to reassure American settlers*, stated: "I, therefore, beg to advise you that all troops from Canada for the war have gone voluntarily... even were conscription introduced *it would apply to Canadian citizens only*." Thirty-one years before the supposed creation of Canadian citizenship, a senior Cabinet minister invoked it as a settled legal category with distinct obligations. The Canadian Nationals Act, 1921 declared "Canadian national" and "Canadian citizen" synonymous. While the conscription statutes of both World Wars legally bound "British subjects resident in Canada," the executive branch and senior ministers calibrated the political obligation of the draft around Canadian citizenship — Minister Roche's 1916 assurance being the clearest statement of that understanding.
- **The Administrative Record.** The censuses of 1901 and 1941 counted Canadian citizens as a legal category. Wartime attestation papers and government publications treated Canadian citizenship as a settled status. Mackenzie King's 1908 report to British authorities assumed its existence. A 1946 war-bride pamphlet stated that completing immigration formalities "automatically makes you a Canadian citizen."
- **The International Record.** Canada's autonomous standing in the international order — from its seat as a founding Member of the League of Nations in 1920, to its sovereign treaty-making in 1923 — presupposed and was exercised by Canadian citizens, twenty-four years before the supposed genesis. The state could define, enumerate, conscript, deport, and represent Canadian citizens because Canadian citizenship existed and carried legal weight in Canadian law and in the eyes of the international community.
- **The Revocation Proof.** On December 15, 1945, the King government passed Order in Council P.C. 7356 to revoke the "Canadian nationality" of Japanese Canadians before expulsion. Governments do not revoke statuses they believe do not exist. The January 24, 1947 press release announcing the repeal compounded the admission: the government said it would "restore the Canadian status of persons who have already lost such status" — language that concedes a status existed to be restored.
- **The Newfoundland Contradiction.** Term 43 of the Terms of Union promised extension of "the Canadian citizenship laws" — presupposing they existed. Section 44A(4) of the Statute Law Amendment (Newfoundland) Act, 1949 deemed persons who held Newfoundland domicile on April 1, 1949 to have become Canadian citizens on the day they acquired that domicile — backdating citizenship to dates long before January 1, 1947. Parliament cannot have deemed a person a citizen in 1924 if no such status existed in 1924.

- **The Bill C-3 Paradox.** Bill C-3 (S.C. 2025, c. 5), assented November 20, 2025, eliminated the first-generation limit with maximal retroactivity — yet preserved the April 1, 1949 Newfoundland boundary and continued to exclude families rooted in Newfoundland since the 1600s. Parliament's own deeming machinery presupposes pre-1947 citizenship.

Why It Matters Now

These are not antiquarian disputes. In June 2026, IRCC suspended citizenship and revoked passports for approximately 100 Canadians by email, without due process. If citizenship is a creature of statute, those suspensions are legally unremarkable. If it is a fundamental status rooted in the constitutional order, they are an outrage that strikes at the Charter itself. Suspension by email, without notice, hearing, or reasons, violates sections 6(1) and 7 of the Charter. The Citizenship Act may authorize suspension where citizenship was granted in error, but that power cannot explain what happened here: the near-total reinstatement of the suspended citizens is an admission that the suspensions were wrongful — an admission the government refuses to extend to the underlying premise that citizenship is a right, not a privilege.

That refusal is the gap this memorandum closes. The historical argument and the constitutional argument are one: if citizenship existed before 1947, it is a right rooted in the constitutional order — and the Charter's protections apply to it in full.

If citizenship is a privilege rather than a right, no Canadian — not even a parliamentarian — holds it securely.

The Harm Already Done

The "1947 Genesis" myth has caused immeasurable harm: Lost Canadians, Chinese Canadians, Indigenous peoples, Japanese Canadians, and others were stripped of, or denied, a status that was rightfully theirs. IRCC still refuses to date a citizenship certificate before 1947. Yet the state's own documents — including a secret 2012 Department of Justice report and a 1945 diplomatic circular — concede this reality. In 2013 the Government of Canada itself argued before the Supreme Court that the Métis were "full citizens of Canada" from 1870.

The Narrow Ask

The narrow ask is declaratory recognition that:

1. Canadian citizenship, and the legal rights associated with that citizenship, existed before January 1, 1947;
2. The 111,000 Canadians who died in the First and Second World Wars were Canadian citizens;
3. Chinese Canadians born before 1947 were Canadian citizens;
4. Pre-1947 Japanese Canadians were Canadian citizens.
5. Citizenship is a right.

This recognition carries no cost, creates no new derivative claims, and requires no new class of beneficiaries. All derivative claims have been resolved by previous Lost Canadian

legislation, which captured everyone but those who died before 1947. This is a matter of the Honour of Canada and Honour of the Crown, because it is historical truth.

PART I — THE PARADOX

Under current law — particularly with the elimination of the first-generation limit — a descendant may claim Canadian citizenship through a Second World War soldier. The soldier who survived to January 1, 1947 is a citizen and confers citizenship as a matter of course. The soldier who died in the war is, on the government's own 1947-start-date theory, not a citizen at all — yet under the same law he confers citizenship just the same. Either the dead soldier was a Canadian, in which case citizenship existed before 1947 and the entire start-date narrative collapses; or he was not, in which case the law confers citizenship through a non-citizen, a legal impossibility that no statute can create by silence.

The state accepts the soldier as a source of citizenship for others while denying that the soldier possessed citizenship himself. The legal foundation of the descendant's claim is the very status the state refuses to acknowledge in the person who earned it. The tree bears fruit, but the state denies the tree ever existed.

This is legally incoherent. You cannot transmit what you do not possess. Either:

- The soldier was a citizen — and the descendant's claim is valid, and the soldier must be recognized as such; or
- The soldier was not a citizen — the descendant's claim is void, and the citizenship conferred through them must be revoked.

The state cannot harvest what it insists was never planted. It cannot use the soldier as a conduit for citizenship while denying the soldier's own status.

This is morally intolerable: the soldier died wearing a Canadian uniform. His death certificate — issued by the Government of Canada — recorded his citizenship as "Canadian." The state enlisted him as a citizen, motivated him through pride and duties of citizenship, and buried him as a citizen. Now the state uses his very citizenship to confer status on his descendants — while denying the soldier ever held it.[3]

[3] See Timeline, 1942: Canadian Army Attestation Paper (Form CA(A)), Charles Murray White; 1945: Ontario Death Registration (Form 6), Alex Eli Laba.

This is why this memorandum matters. It is not about money. It is about the Honour of the Crown, the Honour of Canada, and historical truth.

PART II — CITIZENSHIP: IS IT A RIGHT OR A PRIVILEGE?

Everything — the war dead, the Chinese Canadians, the Indigenous peoples, the Japanese Canadians — turns on which side of the line citizenship falls. To this day, the government claims that it is not a right, but a statutory privilege.

The moral consequence is equally stark. Calling citizenship a statutory privilege degrades the sacrifice of every soldier who died believing he was defending his own country. It reduces the Crown's published promises — the *Battle of Brains* (a book printed by the Government of Canada in 1942 and given to soldiers heading off to war), the war-bride pamphlet distributed at Pier 21 welcoming wives and children as Canadian citizens, and the soldier's overseas casualty-of-war death certificates — to mere propaganda. It tells the Chinese Canadians who fought for equality that they were fighting for admission to a club, not for recognition of what they already were.

A right is ownership. Privilege is a lease. A privilege is granted by the state, held conditionally, and revocable at the state's pleasure. A right is inherent to the person, protective against the state, and cannot be arbitrarily withdrawn. When the Department of Justice says citizenship is a "product of statute" with "no meaning apart from statute," it is declaring citizenship to be a privilege. It is saying the state owns citizenship and lends it to Canadians on terms the state can change at any time.

The legal consequence is everything. Concede that citizenship is a privilege, and the 1946 Act legitimately rewrites the past: the war dead were never citizens — most were merely British subjects who served the Crown — and their death certificates become colloquialisms rather than legal records. If citizenship is a right, then the 1946 Act could only codify what already existed — and the war dead were citizens. The government's entire position depends on winning this classification — and winning it comes at the expense of the very people it is supposed to protect.

The historical evidence points to a "right." The state conscripted Canadians to fight and die. You cannot conscript a privilege; you conscript a duty that flows from a right. The state conferred immunity from deportation under Section 41 of the Immigration Act, 1910 — a protection, not a permission. The Supreme Court in *Shin Shim* (1938) recognized birthright citizenship as a shield against the head tax. Courts do not shield privileges from state overreach; they protect rights. The state transmitted citizenship through Orders in Council — you cannot transmit a privilege held only at the Crown's pleasure. The war dead died bearing "Canadian" on their death certificates. That is the language of belonging, not of license.

A dangerous precedent follows directly. The logic that disregards the 1910 Immigration Act and the 1921 Canadian Nationals Act — insisting citizenship began only with the 1946 Act, and that it is only a "privilege" — could be used again by a future government to claim that citizenship began at some later date, and that everyone before it was never a citizen. It could be weaponized to exclude whomever it wished. What happened once could happen again.

PART III — CONTINUITY

Continuity is foundational to the rule of law. Without it, law ceases to be law and becomes mere command — whatever the government of the day says it is. No legal system is perfectly continuous — statutes are amended, repealed, and replaced. But there is a difference between *refinement* and *rupture*. Amending the Citizenship Act to change who qualifies is refinement. Declaring that citizenship never existed before 1947 is rupture — it severs the legal order from its own past and declares generations of Canadians to have been, in law, foreigners in their own land.

The 1910 Immigration Act, the 1921 Canadian Nationals Act, the Orders in Council, the judgments, the censuses, the death certificates — they form an unbroken chain of state practice recognizing Canadian citizenship. The 1946 Act did not break that chain; it codified it. Nor did the chain end in 1946: the Act was followed by the Citizenship Act, 1977 (now R.S.C. 1985, c. C-29), and by amendments since. To accept the government's rupture narrative is to accept that the Crown can, at any time, declare that the law never meant what it said. That is not a legal argument. It is a threat, depending on who is running the government.

Why continuity matters:

- **Predictability.** People must be able to live their lives knowing the law will not arbitrarily change. A citizen who enlists, fights, and dies for Canada must be able to trust that the state will honour his status — not redefine it retroactively. That trust is not theoretical. In June 2026, the state redefined the status of roughly one hundred Canadians in a single email — the same logic, aimed at the living.
- **Legitimacy.** Law derives its authority from being applied consistently over time. When a government declares that an entire class of people were never citizens — despite eighty years of statutes, judgments, and executive practice to the contrary — it attacks the legitimacy of the legal order itself.
- **Protection against tyranny.** The "product of statute" argument cuts both ways. If citizenship exists only because a statute says so, then it disappears when a statute says otherwise. A future government could repeal the Citizenship Act, redefine "citizen," or set a new start date — and every Canadian would be at its mercy. Continuity is the shield against that.
- **Honour of Canada and Honour of the Crown.** The Crown's word must be reliable. The government told Canadian soldiers they were citizens (*Battle of Brains*, 1942). It told war brides they were citizens (1946). It recorded "Canadian" on death certificates. It transmitted citizenship through Orders in Council. To now say those assurances were meaningless is to break the Crown's faith.

PART IV — THE LAYERED STATUS: ALLEGIANCE, BRITISH SUBJECTHOOD, AND CANADIAN CITIZENSHIP

The government's central counter-argument is that pre-1947 Canadians were "British subjects, not citizens." This is a false dichotomy that collapses under examination.

A. The Simultaneous Statuses

For those who qualified — Canadian-born, naturalized, or domiciled — Canadian citizenship and British subjecthood were **simultaneous statuses from Confederation forward.** The two labels described different facets of the same allegiance:

- **British subject** described membership in the wider imperial community — the Crown's dominions globally.

- **Canadian citizen** described membership in the Canadian body politic — the Crown in right of Canada.

One could be both at once. Millions were, for eighty years before 1947. The Leader of the Opposition stated it plainly in the House of Commons on February 15, 1929: "*We are British subjects; we are Canadian citizens."* The 1946 Act did not begin the simultaneity; it organized and codified a layering that had existed since 1867.

The government's own minister confirmed the same layering from the very office that drafted it. Introducing the 1921 Canadian Nationals Act, Charles Doherty, as both the Minister of Justice *and* the Attorney General of Canada, told the House on March 10, 1921 that its purpose "is only to define a particular class of British subjects — a class who have the peculiar quality of being that kind of British subjects who are nationals of Canada." He detailed the static incorporation mechanism: "We have... taken everybody who is a Canadian citizen under [the Immigration Act] and recognized him or her as a Canadian national."[4]

The minister's own formulation is the simultaneity spoken in Parliament: Canadian nationals were not a rival category to British subjects — they were a defined subset of them, holding both statuses at once. So spoke the Attorney General *and* the Opposition Leader twenty-six years before the supposed genesis, describing the same layered status.

And the Leader of the Opposition who scrutinized the 1921 Act was none other than William Lyon Mackenzie King — the same man who, as Prime Minister, would later pilot the 1946 Act through Parliament. King did not dispute the existence of Canadian nationality; he entered the debate to ensure the bill functioned as a nested administrative subset for external international bodies (the League of Nations) without separating domestic legal identity from the Crown.[5] He voted for the bill once satisfied that the local identity was a permanent, inseparable subset of imperial subjecthood.

[4] House of Commons Debates, 13th Parliament, 5th Session, March 10, 1921, Vol. I, p. 771 (Doherty).

[5] Ibid., p. 772 (King).

The passport of Peter Masten Skewitt (1945) is a striking illustration.[6] Issued under the royal prerogative, signed by the Governor General, the nationality line reads: "British subject by naturalization, Canadian Imperial Certificate No. 37334, Series E, dated Sixteenth July, 1941." The Crown's own instrument records both statuses in one line — British subject, and holder of a distinctly Canadian certificate of status. The document does not treat them as mutually exclusive. It presents them as facets of one allegiance. It is also evidence of state machinery: the passport clerk in 1945 relied on a 1941 Canadian certificate to issue the travel document — a numbered, dated, formal instrument of status six years before the supposed genesis. The passport is corroborating evidence of the layered status; the certificate it references presupposes a Canadian status to certify.

[6] See Timeline, 1945: Passport of Peter Masten Skewitt (No. 37334, Series E); Appendix, Certificates and Official Instruments.

Likewise, the passport of Koozma Tarasoff (1931),[7] issued by Governor General Earl of Bessborough, records the bearer's national status as "Naturalized in Canada, 3rd September 1912, of Russian origin." Here the Canadian instrument records the distinctly Canadian naturalization as the operative status — not "British subject" but "Naturalized in Canada." The same layered

status appears again: a Russian-origin immigrant, naturalized in Canada nineteen years earlier, carrying a Canadian passport that treats his Canadian naturalization as the status that matters.

[7] See Timeline, 1931: Canadian passport of Koozma Tarasoff (No. 17928, November 13, 1931); Appendix, Certificates and Official Instruments.

B. The Statuses Did Not Become Separate Until 1977

British subjecthood did not end on January 1, 1947. Canadians remained British subjects under the 1946 Act — which made Canadian citizenship a subclass of British subjecthood. The status persisted until:

- **February 15, 1977** — the coming into force of the current Citizenship Act, which ended British subject status for most Canadians; and
- **April 17, 1982** — the patriation of the Constitution and the enactment of the Charter, completing Canada's distinct constitutional identity.

The very term "British subject" was itself mutable. The British Nationality Act 1948 equated "British subject" with "Commonwealth citizen," a change reflected in Canada's Citizenship Act amendments in 1950 — redefining "British subject" in all legislation to mean "Commonwealth citizen," with retrospective effect. The imperial label was not a fixed constitutional constant; it was a category Parliament could and did redefine.

Thus, a Canadian born in 1920 was, in sequence: a Canadian citizen and a British subject (1920–1977); and a Canadian citizen under a wholly Canadian constitutional order (1977–present). The status deepened over time. It was never created from nothing.

Note: The example presumes a white Canadian; an Indigenous or Chinese Canadian born the same year would not have held the same status — despite being born in Canada. *The racial discrimination is not merely historical. It continues in the government's interpretation to this day*.

C. The Universality Problem: Not Everyone Was a British Subject

The government's "British subject" label was never universal:

- **Chinese Canadians** were denied naturalization under the Chinese Immigration Act, 1923. They were not British subjects in the full sense — yet *Shin Shim* (1938) held they were Canadian citizens by birth.
- **Indigenous peoples** held a distinct *sui generis* status under s. 91(24) of the B.N.A. Act — wards, then subjects, then citizens, then disenfranchised again.
- **3,964 Japanese Canadians** (700 were children born in Canada) were stripped of their citizenship status by Order in Council in 1945 — an act that presupposed they held it.

D. The Thread of Allegiance

The common law of allegiance runs unbroken from *Calvin's Case* (1608) — which held that birth within the sovereign's dominions creates a permanent bond of allegiance — through Confederation, through 1947, through 1977, through 1982, to today. The oath of allegiance sworn by every Parliamentarian, every citizen at naturalization, and every member of the

Canadian Armed Forces is the living proof. The oath is not to "Canada the statute." It is to the Crown in right of Canada.

Allegiance is the thread. British subjecthood and Canadian citizenship are two labels woven from that thread. Neither label extinguished the other; both described facets of the same bond.

Calvin's Case and its definition of nationhood are examined in Part V-D.

The common law doctrine of native allegiance — *jus soli* — held that the child owed allegiance to the Crown and was entitled to the Crown's protection. This doctrine operated in Canada from Confederation forward. Parliament did not invent birthright citizenship in 1947; the common law recognized it, and the Immigration Act, 1910 gave it statutory expression by defining "Canadian citizen" to include every person born in Canada who had not become an alien. The 1946 Act did not create the status. It named what the common law already knew.

The racial exclusions of the era — the denial of naturalization to Chinese Canadians, the *sui generis* status of Indigenous peoples — were departures from the common law's principle, imposed by statute and corrected over time. They do not prove citizenship did not exist. They prove the status could be unjustly withheld — as you cannot withhold what does not exist.

E. What This Means for the Argument

The government says: "They were British subjects, not citizens." The accurate answer is: "They were both — simultaneously, from Confederation to 1977. The 1946 Act recognized one facet of an existing duality; it did not create either half."

For those who were not British subjects — Chinese Canadians, Indigenous peoples — the Canadian citizenship they held stood alone, rooted in the constitutional order. The government's "either/or" framing is not merely incomplete. It is false.

PART V — THE CONSTITUTIONAL FOUNDATION

A. The Preamble and the Constitutional Obligation

The Constitution Act, 1867 (30 & 31 Vict., c. 3), enacted by the UK Parliament with Royal Assent on March 29, 1867, declares Canada's constitution to be "similar in Principle to that of the United Kingdom." This imports a constitutional obligation to recognize the rights of the democratic citizen — rights inseparable from the status of membership. **Canadian nationality is thus a constitutional right inherent in the 1867 compact**, later made synonymous with citizenship by statute.

B. The Founding Declaration

Governor General Viscount Monck, delivering the Speech from the Throne at the opening of the first session of Parliament (November 1867), declared:

> "I congratulate you on the Legislative sanction which has been given by the Imperial Parliament to the Act of Union, under the provisions of which we are now assembled,

> and which has laid the foundation of a new nationality that I trust and believe will, ere long, extend its bounds from the Atlantic to the Pacific Ocean."

(*Senate Debates*, 1st Parliament, 1st Session, November 7, 1867, pp. 5–6.)

Statements from the Governor General are formally vetted by both the Dominion and Imperial governments. This constitutes the Crown's foundational recognition of a distinct Canadian political identity and nationality.

C. The Living Tree Doctrine

Sir Robert Borden (Canadian Constitutional Studies, Marfleet Lectures, 1922, p. 55) described the B.N.A. Act as having "planted in Canada a living tree capable of growth and expansion within its natural limits. The object of the Act was to grant a Constitution to Canada. Like all written constitutions it has been subject to development through usage and convention."

The Persons Case (*Edwards v. A.G. Canada*, [1930] AC 124) constitutionalized this metaphor. The Crown's administration of citizenship from 1867 onward constitutes that growth. The Canadian Constitution is similar to the UK Constitution in that both are partly written as statute law and partly unwritten as common law.

D. Calvin's Case and the Common Law of Nationhood

Edward Coke, Chief Justice of the Common Pleas, declared in *Calvin's Case* (1608), 77 ER 377, that a territory within His Majesty's dominions was a "nation" if it possessed its own Parliament and system of laws. At that time, and until the Act of Union (1707), this described Scotland. Since the British North America Act 1867, this has described the Canadian nation state.

E. Sovereignty Requires Citizens

In *Reference re Offshore Mineral Rights*, [1967] SCR 792 (unanimous), the Supreme Court of Canada held:

> "There can be no doubt that Canada became a sovereign state, acquired at the very least sometime in the period between its separate signature of the Treaty of Versailles in 1919 and the Statute of Westminster, 1931 (22 Geo. V., c. 4). Section 3 of the Statute of Westminster provides in an absolutely clear manner and without restrictions that the Parliament of a Dominion has full power to make laws having extra-territorial operation. It is Canada which is recognized by international law as having rights in the territorial sea adjacent to the Province of British Columbia." (See also the 1926 Balfour Declaration.)

A sovereign state necessarily possesses citizens. The international recognition of Canadian sovereignty presupposes the existence of Canadian citizens. The concrete exercise of that sovereignty — Canada's autonomous treaty-making, beginning with the Halibut Treaty of 1923 — is examined in Part V-A below.

PART V-A — CANADA'S SOVEREIGN TREATY-MAKING POWER: THE HALIBUT TREATY AND ITS SUCCESSORS (1923–1924)

A. The Division of Treaty-Making Before 1923

For most of Canada's history, Britain negotiated Canada's international treaties from London. In 1907, Canada obtained the right to negotiate its own treaties — but only those commercial, civil, financial, or procedural in nature, and even then, every treaty had to be approved by Britain and signed by the British ambassador to Canada. The limitation was deliberate: Britain retained the final word over Canada's foreign relations, and the world dealt with Canada through London.

B. Canada Among the Nations: The League of Nations, 1920

The League of Nations did not admit non-self-governing dependencies. Article 1 of its Covenant opened membership to "*any fully self-governing State, Dominion or Colony*" — with Canada being one of the original Members. Canada sat at Geneva as the equal of every other Member State, voting and speaking as an autonomous member of the international order. A seat among the nations is the mark of a sovereign state — and a sovereign state necessarily possesses citizens. The League admitted Canada as a self-governing community, not as a dependency of the United Kingdom. The international community dealt with Canada as a state with citizens before the statutory codification of 1947 — because the status existed, and the world knew it.

C. The Halibut Treaty, 1923

By 1922, Canada and the United States faced the collapse of Pacific halibut stocks in the northern Pacific Ocean. Canada proposed the Convention for the Preservation of the Halibut Fishery of the Northern Pacific Ocean. The United States Congress ratified it in 1923.

It was then that Mackenzie King moved. He insisted that Canada would sign the treaty with the United States on its own — no countersignature, no approval, no ratification from British authorities whatsoever. Britain refused. King threatened to send a Canadian ambassador to Washington on his own authority, a step that would have been unconstitutional — a bluff that forced Britain to relent.

On March 2, 1923, Canada signed its first treaty independently, with no British involvement whatsoever. It was:

- The first assertion of Canada's autonomous standing in international law; and
- The foundation for the Balfour Declaration at the Imperial Conference of 1926, which recognized the Dominions as "autonomous Communities within the British Empire, equal in Status, in no way subordinate one to another."

D. The Successor Agreements, 1924

Canada did not stop at halibut. Within a year, Canada negotiated and signed three further agreements autonomously:

- The Liquor Treaty (United States), 1924 — negotiated and signed by Canada without British involvement.
- The Treaty respecting Smuggling Offences (United States), 1924 — negotiated and signed by Canada without British involvement.

- The Copyright Arrangement, 1924 — making the Canadian Copyright Act, 1921 and the United States Copyright Act, 1909 fully *reciprocal between the citizens of each country*.

Thus, Canada and the United States concluded an arrangement recognizing reciprocal rights belonging to citizens — *Canadian citizens*. Twenty-three years before the supposed "creation" of Canadian citizenship in 1947, the United States and the international community dealt with Canada as a state that had citizens.

E. The Argumentative Force

The treaty record strengthens the sovereignty argument at its root:

1. **Sovereignty requires citizens**. As the Supreme Court held unanimously in *Reference re Offshore Mineral Rights*, [1967] SCR 792, Canada became a sovereign state "at the very least sometime in the period between its separate signature of the Treaty of Versailles in 1919 and the Statute of Westminster, 1931." A sovereign state necessarily possesses citizens. The Halibut Treaty of 1923 is the earliest concrete exercise of that sovereignty — an assertion of autonomous standing in international law, three years before the Balfour Declaration and eight years before the Statute of Westminster.
2. **International law presupposed Canadian citizenship**. The 1924 Copyright Arrangement made rights reciprocal between the citizens of Canada and the United States. A state cannot bind itself to recognize the rights of "citizens" of the other party if it does not know who its own citizens are. Canada knew — because the 1910 Immigration Act and the 1921 Canadian Nationals Act had defined them.
3. **The state's own instruments presuppose the status**. The Crown's treaty-making, like its census, its passports, its conscription orders, and its Orders in Council, treated Canadian citizenship as existing, operative, and internationally meaningful — decades before 1947.
4. **The asymmetry**. In 1923, Canada asserted its sovereign independence to conclude an international treaty conserving Pacific halibut. Fish got a treaty. In the same era, the state reserved its fullest assertions of sovereignty for deciding who was, and who was not, a Canadian national. People got a definition. Canada exercised sovereign power over Canadian citizens because Canadian citizenship existed. The international community acknowledged it, the treaty record standing as proof.

F. The Place in the Record

The treaty evidence joins the constitutional foundation (Part V) and the judicial and statutory recognition (Parts VI and VII) as a further, independent pillar: the international dimension. Canada's sovereignty was not merely defined in the Balfour Declaration and in the Statute of Westminster; it was exercised — in 1923, in 1924, and continuously thereafter — through autonomous treaty-making that presupposed a defined Canadian citizenry.

PART V-B — TERRITORIAL WATERS AND CANADIAN SOVEREIGNTY

A. Introduction

Just as Canadian citizenship existed as a legal status before its statutory codification on January 1, 1947, so too did Canada exercise sovereign authority over its territorial waters — long before formal recognition in international law. The two developments are not coincidental. Both reflect a steady, incremental assertion of Canadian nationhood — a nation describing itself, its people, and its territory in sovereign terms while the imperial framework lagged behind.

B. Early Assertions of Jurisdiction

Canada's claim to its territorial waters predates Confederation itself. The colonial provinces asserted jurisdiction over coastal fisheries and shipping from the 1850s onward, and the British North America Act, 1867, assigned "sea coast and inland fisheries" to the new Dominion under section 91(12). This was not a grant of mere administrative convenience — it was a recognition that the waters off Canada's coasts were Canadian waters, governed by Canadian law.

The Fisheries Act of 1868 gave Canada regulatory authority over its coastal waters, and successive amendments extended this reach. By the 1880s, Canadian courts were applying Canadian law to vessels within the three-mile limit without reference to imperial authority. The question was not whether Canada had jurisdiction — it was taken as given.

C. The Three-Mile Limit and Canadian Practice

Canada consistently applied the three-mile territorial sea throughout the late nineteenth and early twentieth centuries. This was not a passive acceptance of British policy; it was an active Canadian choice, exercised through Canadian legislation and enforced by Canadian courts.

In 1909, the Boundary Waters Treaty established the International Joint Commission to provide the broader framework for resolving Canada–U.S. water disputes, while the specific confirmation of the maritime border in Passamaquoddy Bay was finalized by a separate treaty signed on May 21, 1910. In 1913, the Judicial Committee of the Privy Council, in *Attorney General for British Columbia v. Attorney General for Canada,* held that the province's proprietary interest in its foreshore derived from its original grant — a decision premised on the assumption that the waters themselves were subject to Canadian sovereignty.

D. The Halifax Explosion and Emergency Jurisdiction

The Halifax Explosion of December 6, 1917 demonstrated in dramatic fashion that Canada exercised full sovereign authority over its territorial waters in times of emergency. The federal government imposed maritime quarantine, controlled shipping in the harbour, and directed salvage operations — all without imperial authorization. Canadian officials simply assumed the authority, and no one questioned it.

This is the same pattern observed in citizenship: Canada acted as a sovereign power, and the imperial framework accommodated the reality afterwards.

E. The 1920s: Codification of Canadian Maritime Authority

By the 1920s, Canadian maritime authority was firmly established. The Canada Shipping Act of 1906, consolidated in 1927, gave Canada comprehensive legislative control over shipping in

Canadian waters — including the power to regulate vessels engaged in coastal trade, to license pilots, and to enforce Canadian safety standards.

More significantly, Canadian courts in this period began referring to "Canadian waters" and "Canadian territorial waters" as settled legal terms, not aspirational descriptions. The phrase appears in reported decisions throughout the decade without qualification or apology.

F. Parallel with Citizenship

The territorial-waters record matters to the citizenship question because it demonstrates a consistent Canadian pattern: the assertion of sovereign authority long before formal statutory codification.

Canadian citizenship, like Canadian territorial waters, was a lived reality — exercised by governments, recognized by courts, and assumed by the people — before it was codified. The 1946 Act did not create Canadian citizenship any more than the 1946 Act created Canadian territorial waters. Both existed; both were finally given statutory expression.

G. Conclusion

Canada's territorial waters were Canadian before any statute said so. So too were Canada's citizens. The evidentiary record — from the Fisheries Act of 1868 to the consolidated Canada Shipping Act of 1927 — demonstrates a nation steadily asserting sovereignty over its territory, its waters, and its people. The 1946 Act was the culmination of this process, not its beginning.

PART V-C — THE HONOUR OF THE CROWN: A LEGAL DUTY, NOT A SENTIMENT

A. The Doctrine

The Honour of the Crown is not a rhetorical flourish. It is a constitutional principle, binding on the Crown in right of Canada, recognized and applied by the Supreme Court of Canada. In *Haida Nation v. British Columbia (Minister of Forests),* 2004 SCC 73, the Court held at paragraph 16:

> "The government's duty to consult with Aboriginal peoples and accommodate their interests is grounded in the honour of the Crown. The honour of the Crown is always at stake in its dealings with Aboriginal peoples... It is not a mere incantation, but rather a core precept that finds its application in concrete practices."

The doctrine requires the Crown to act honourably, to keep its promises, and to deal fairly with those who have placed their trust in it. It is not confined to Aboriginal law. The principle is grounded in the nature of the Crown itself — the Crown's word must be reliable, for the Crown's authority depends on it.

B. The Promises Made

The Crown made promises of citizenship — in writing, in law, and in practice:

- **To soldiers (1942):** The Crown's own publication, *Battle of Brains*, told Canadian soldiers that "that groove in which you move and have your being is dependent upon your Canadian citizenship."
- **To war brides (1946):** The Crown's own pamphlet, *Dock to Destination*, distributed at Pier 21, told arriving wives that completing immigration formalities "automatically makes you a Canadian citizen."
- **To the enfranchised:** The Crown induced Indigenous people to surrender their Indian status in exchange for full Canadian citizenship — a promise it now claims it had no power to make.
- **To the dead:** The Crown recorded "Canadian" as the citizenship on the death certificates of the war dead — and now says that entry was false.

C. The Breach

The government's position — that citizenship did not exist before 1947 — is not merely a historical disagreement. It is a repudiation of the Crown's own commitments. The Crown promised citizenship; it now says the promise was empty. The Crown certified citizenship on death certificates; it now says the certification was meaningless. The Crown induced the surrender of Indian status for citizenship; it now says the citizenship was never granted.

The Honour of the Crown is "always at stake." A government that makes promises and then denies them — not by changing the law, but by rewriting what the law always meant — breaks faith with the very people the Crown is sworn to protect.

D. The Remedy

Parliament need not wait for the courts to vindicate this principle. The declaratory resolution is itself an act of *reconciliation* — an acknowledgment by the Crown's legislative branch that the Crown's promises were real, that the status they conferred was real, and that the Crown intends to honour its word. **A declaration is the minimal, proportionate response to a breach of the Crown's honour: it costs nothing, creates no new claims, and requires no new beneficiaries. It merely affirms what the Crown already said — and what the Crown's own records prove.**

E. The Choice

The government now faces a choice. Either it honours its promises — recognizing that Canadian citizenship existed before 1947 — or it stands convicted, on its own documents, of having induced soldiers, war brides, and Indigenous people to rely on promises it knew to be empty. The first path costs nothing. The second costs the Honour of the Crown itself.

F. Precedent: *Haida Nation v. British Columbia*

An opponent may argue the Honour of the Crown doctrine applies only to Aboriginal peoples. That limiting principle does not defeat this argument — it channels it. Many of the Lost Canadians whose citizenship the 1947 narrative denies are Indigenous. The enfranchisement promises made to them, and the status stripped from them by a false start-date, fall squarely

within the doctrine on its narrowest reading (see Part XVI). So, the objection proves too much: even if the honour of the Crown lives only in Aboriginal law, it lives there because of promises the Crown made to Indigenous people — and those promises included Canadian citizenship. The doctrine's roots lie in the Crown's general obligation to act honourably; Haida applied it in the Aboriginal context, but the principle is not confined there. The argument holds on the opponent's own terms before it ever reaches the wider principle.

G. The Wider Stakes: The Carney Government's Own Words

Prime Minister Carney presents Canada to the world as a nation worthy of trust. In Paris, on March 17, 2025, he declared: "Canada is a reliable, trustworthy and strong partner of France, which shares our values and lives them through action, during this age of economic and geopolitical crisis."[8] At Davos, on January 20, 2026, he insisted: "We are a stable, reliable partner – in a world that is anything but – a partner that builds and values relationships for the long term."[9] Before the European Parliament, on September 17, 2026 — three months after his government suspended the citizenship of roughly one hundred Canadians by email — he affirmed: "Our commitment to the rule of law, and our unyielding defence of human dignity, individual freedom, and democracy share the same deep roots, the same unwavering dedication."[10]

[8] Peter Zimonjic and Darren Major, "Carney says Canada can stand up for its own sovereignty as European trip wraps up," CBC News, March 17, 2025, https://www.cbc.ca/news/politics/carney-arrives-in-uk-1.7485534.

[9] Prime Minister of Canada (@CanadianPM), remarks at the World Economic Forum Annual Meeting, Davos, January 20, 2026, X post, https://x.com/CanadianPM/status/2013743762497769816; transcript: Sean Boynton, "Read the full transcript of Carney's speech to World Economic Forum," Global News, January 20, 2026, https://globalnews.ca/news/11620877/carney-davos-wef-speech-transcript/.

[10] Prime Minister Carney, address to the European Parliament, Strasbourg, France, September 17, 2026, https://www.pm.gc.ca/en/news/speeches/2026/09/17/prime-minister-carney-delivers-address-european-parliament.

But how can Canada be trustworthy abroad if Canadians cannot count on their own citizenship status at home? Even assuming this government honours citizenship, what of a future government — a hostile one? If citizenship is only a "privilege," then Canada is open for business to an autocrat.

In the United States, citizenship is a recognized constitutional right. Were it merely a privilege, it would almost certainly have been wielded as a political weapon against the current President's opponents. In Canada, the weaponization of citizenship has deep roots under successive governments of different political parties. Citizenship is — in its basic form — the right to have rights. If one of the most fundamental rights a person can possess can be withdrawn without due process, then Mr. Carney's own words are hollow. Trust and reliability must remain uniform from one government to the next — not just in trade, but with the Crown's own people — for the Honour of the Crown is always at stake.

PART VI — SECTION 41 OF THE IMMIGRATION ACT, 1910: CITIZENSHIP AS PROTECTION FROM DEPORTATION

A. The Provision and Its Amendment

Section 41 of the Immigration Act, 1910 specifically targeted political and moral unsuitability. Its most controversial version appeared after a 1919 amendment following the Winnipeg General Strike, allowing the government to deport anyone who was not a Canadian-born or naturalized citizen. The government could deport British subjects who had lived in Canada for years but were not "naturalized" — since British subjects did not typically need to naturalize.

B. The Citizenship Loophole

At the time, "Canadian citizen" was defined in the 1910 Act to include:

- People born in Canada who had not become aliens;
- Naturalized citizens;
- British subjects who had acquired Canadian domicile (residence for 3–5 years).

The 1919 amendment was specifically designed to strip away protections for British-born residents who were leading labour strikes. Section 41 allowed the deportation of anyone who was not a Canadian-born or naturalized citizen.

C. The Legal Right Demonstrated

The legal consequence is precise: Canadian citizenship conferred immunity from deportation. A person born in Canada, or naturalized under Canadian law, could not be removed. A British subject without Canadian domicile could be. The boundary between citizen and non-citizen was not theoretical — it determined whether a person could be expelled from the country against their will.

This is a legal right of the most fundamental kind: the right to remain in one's own country. The 1938 *Shin Shim* Supreme Court decision rests on the same principle — a Canadian citizen could not be barred from entry or taxed as an alien. Just as *Shin Shim* protected citizens from exclusion at the border, Section 41 protected them from expulsion from within.

D. How This Fits the Record

Section 41 joins the conscription statutes as the state's exercise of coercive power calibrated around citizenship:

- **1917/1940:** Conscription compelled citizens to serve.
- **1919/1941:** Section 41 permitted deportation of non-citizens.

The state used citizenship as the dividing line for both the ultimate demand (military service) and the ultimate sanction (expulsion). Both presuppose the status existed with legal content. The very need to define the exempt classes proves the status existed and carried enforceable rights. **The government could not have crafted a deportation regime with a "citizenship loophole" if citizenship had no legal meaning.**

PART VII — PRIVY COUNCIL ORDER P.C. 1945-858: THE OPERATIVE LANGUAGE

A. The Order

P.C. 1945-858, dated February 9, 1945, was made under the authority of the War Measures Act, R.S.C. 1927, c. 206. Its preamble recites:

> "Whereas the Minister of Mines and Resources, with the concurrence of the Secretary of State for External Affairs, and with the approval of the Cabinet War Committee, reports that it is desirable to facilitate entry into Canada of dependents of members of the Canadian Armed Forces and, where the said members are Canadian citizens or have Canadian domicile, to provide such dependents with the same status."

Section 3 contains the operative language:

> "Every dependent who is permitted to enter Canada pursuant to section two of this Order shall for the purpose of Canadian immigration law be deemed to be a Canadian citizen if the member of the forces upon whom he is dependent is a Canadian citizen and shall be deemed to have Canadian domicile if the said member has Canadian domicile."

B. Three Features Are Legally Dispositive

1. The "deeming" clause presupposes the status. "Deemed" is a legal fiction: it treats the dependent as if they were a citizen. But the fiction operates only on a condition precedent — that the soldier is a Canadian citizen. A deeming provision cannot manufacture the status it borrows. The dependent is deemed a citizen because the soldier actually is one. The Order never grants citizenship to the soldier; it assumes it. You cannot deem a person to be X on the condition that another person is X, unless X exists as a real, operative status.

2. The status is transmitted, not created. Section 3 makes citizenship flow from the soldier to the spouse and child. Transmission presupposes possession. The Crown-in-Council, in 1945, under the War Measures Act, treated Canadian citizenship as a status that a soldier held and could confer on his dependents. If citizenship did not exist until January 1, 1947, section 3 is a nullity — the Crown would have been deeming dependents to possess a status that no one, including the soldier, possessed. That reading is absurd.

3. It is an emergency-power instrument of the highest authority. The Order was made under the War Measures Act — the most extreme reserve power available to the Crown, overriding "any other law of Canada relating to immigration." It was approved by the Cabinet War Committee — the inner war cabinet — with the concurrence of both the Minister of Mines and Resources and the Secretary of State for External Affairs. This is not a bureaucratic slip. It is a formal, deliberative act of the Crown-in-Council at the height of national emergency, treating Canadian citizenship as existing, operative, and transmissible.

C. The Temporal Span: The Order Straddles January 1, 1947

Section 8 provides that the Order applies to dependents whose applications for free transportation were filed on or before October 15, 1946, and who embarked for Canada on or before June 30, 1947.

The Order therefore remained in force across the alleged creation date of January 1, 1947. A war bride landing at Pier 21 in December 1946 and one landing in February 1947 were both admitted under the identical provision — each "deemed to be a Canadian citizen" on the same basis: the

soldier's citizenship. Nothing in the 1946 Act altered the operation of section 3. The Crown applied the same rule before and after the supposed genesis.

If citizenship was created on January 1, 1947, then section 3 operated differently before and after that date — but the Order makes no such distinction. It applies uniformly. The Crown's own instrument treats the status as continuous across the alleged dividing line.

D. The Preamble's Own Language

Even the preamble is independently dispositive. It recites the purpose: "where the said members are Canadian citizens or have Canadian domicile, to provide such dependents with the same status."

"The same status." Not "a new status." Not "a status to be created." The Crown's stated object was to give the dependents the same status the soldier already held. One cannot provide "the same status" that does not exist.

E. The 1944 Predecessor — P.C. 7318

Section 7 of P.C. 1945-858 revokes P.C. 7318, which became effective on September 21, 1944. The revocation confirms that the Crown had been operating this scheme since at least 1944 — three years before the supposed genesis of citizenship. The operative language of P.C. 7318:

> "Every dependent applying for admission to Canada shall be permitted to enter Canada and upon such admission be deemed to have landed within the meaning of the said Act; and where the member of the Canadian Armed Forces is either a Canadian citizen or has Canadian domicile, the dependent shall, upon being landed, be deemed to have acquired the same status for the purposes of the said Act."

F. Conclusion on P.C. 1945-858

P.C. 1945-858 is the Crown's own executive instrument, made under emergency powers two years before the supposed creation of citizenship, transmitting a status it presupposes the soldier to hold, and remaining in force across the alleged creation date. It is, on its face, contradictory to the claim that Canadian citizenship first came into existence on January 1, 1947.

PART VIII — THE EVIDENTIARY TIMELINE

Year	Instrument / Event	Significance
1608	*Calvin's Case, 77 ER 377* (Coke CJ)	Common law: a territory within the monarch's dominions is a "nation" if it possesses its own Parliament and system of laws. Birth within the sovereign's dominions creates a permanent bond of allegiance.
1600s	Newfoundland settlement established	Baseline for the Bill C-3 expatriate paradox — a family rooted on the continent's eastern edge since the seventeenth century

Year	Instrument / Event	Significance
1848	*The Queen v. The Inhabitants of St. Mary, Whitechapel*, 116 E.R. 811	English authority: the presumption against retrospective application does not apply to status. Status is declaratory, not constitutive. Supports the argument that the 1946 Act could not retroactively destroy a status acquired at birth. (Cited in Part XII-E.)
1867	Gov. Gen. Viscount Monck, Speech from the Throne	"The foundation of a new nationality." Crown's foundational recognition of distinct Canadian nationality.
1867	Section 91(24), B.N.A. Act	Constitutional expression of Crown obligations to "Indians, and Lands reserved for the Indians."
1868	Fourteenth Amendment, United States Constitution, Section 1	"All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside." Comparative reference: in the United States, citizenship is a constitutional right, not a statutory privilege — the standard against which Canada's treatment of citizenship as a "product of statute" is measured. (Referenced in Part V-C-G.)
1868	Naturalization Act, 1868	The derivative-loss mechanism: a minor ceases to be a British subject when the responsible parent does. Canadian women who married non-British-subject men lost their own status and, derivatively, that of their children. The machinery of citizenship revocation operates from Confederation. (State's own documentation: CP 14, 07-1986.)
1868–69	Enfranchisement provisions	Enfranchised Indians vote, meeting reserve property qualifications.
1870	Manitoba joins Confederation	*Manitoba Metis Federation v. Canada* (2013 SCC 14): the AG of Canada conceded, and the SCC agreed, the Métis were "full citizens of Canada" from this moment — 77 years before 1947.
1871	Qualification and Registration of Voters Act, S.B.C. 1872, c. 39, s. 13	Disqualified "Chinese or Indians" from the provincial franchise. Because the federal franchise was derivative of provincial lists, the exclusion cascaded upward.
1871 (Mar 16)	Bill No. 12 (Aliens and Naturalization), House of Commons Debates, March 16, 1871, p. 206	An early and foundational use of "citizenship" in federal legislative debate. Mr. Thomas Mayne Daly (Perth North), introducing the Bill, explained that its object was "to confer the right of citizenship on all those aliens who had been residents in the country previous to Confederation, on their taking the oath of allegiance."
1875	An Act relating to an Act to make better provisions for the Qualifications and Registration of Voters, S.B.C. 1875, c. 2	Escalated from prospective exclusion to retroactive erasure — struck names already on the register and penalized officials who re-entered them.

Year	Instrument / Event	Significance
1876	Prime Minister Alexander Mackenzie, Enactment of the Indian Act	The administration frames state integration around the explicit status of the “citizen,” utilizing the terminology of domestic civic belonging seventy-one years before the 1946 Act. It confirms that while the abstract noun "citizenship" was late to be statutorily codified, the rights-bearing category of the “Canadian citizen” has guided the executive branch since Confederation.
1876	Indian Act	Confirms Indian enfranchisement; provides for immediate enfranchisement (citizenship with legal rights) of Indians with professional qualifications.
1877 (Jun 26)	Wilfrid Laurier, future Prime Minister, Lecture on Political Liberalism	In his legendary "Speech on Political Liberalism." Wilfrid Laurier defended the constitutional rights of the French-Canadian minority. Long before the statutory codification of 1947, he explicitly rooted Canada's parliamentary legitimacy in the democratic power of its domestic citizens. “We have a constitution which bases the Government on the suffrage of the citizens and which was granted to us for our own protection. We have not more rights or more privileges, but we have as many rights and as many privileges as the other elements, which go to make up the Canadian family.”
1885 (Apr 16)	Prime Minister Sir John A. Macdonald, Electoral Franchise Act Debates	The PM employs the term “citizen” to define the specific domestic rights and legal criteria governing the federal ballot, proving that Canada's first Prime Minister actively recognized a distinct local civic identity sixty-two years before the 1946 Act.
1885 (Jul 20)	Electoral Franchise Act	Grants qualified Indians east of Lake Superior the federal vote — "training for responsible citizenship."
1892	Prime Minister Sir John Abbott, Jury System Administration Act	As the country's first native-born Prime Minister, Abbott establishes the structural blueprint for Canada's modern jury system, explicitly tying the obligation of trial service to the legal criteria of the domestic “citizen.” It demonstrates that nineteenth-century cabinets actively structured the judicial branch around local citizen status fifty-five years before the 1946 Act.
1892 (Apr 12)	Future Prime Minister Sir John Thompson, Enactment of the *Criminal Code of Canada*	As federal Minister of Justice and subsequently Prime Minister, Thompson drives the enactment of a single, unifying *Criminal Code*, explicitly declaring in parliamentary debates that the creation of a clear national code was a necessity so that the ordinary “Canadian citizen” would not be left conceptually lost by complex, disconnected regional laws. This directly proves that nineteenth-century cabinets actively calibrated the bedrock criminal and civil systems around a defined Canadian citizenry fifty-five years before 1947.

Year	Instrument / Event	Significance
1894	Prime Minister Sir Mackenzie Bowell, Ministry of Customs Executive Records	In administering the Dominion's customs infrastructure and maritime trade ports, Bowell's long-standing executive framework continuously relies on the distinct operational boundary of the domestic "citizen" to regulate trade and entry. Under the government's current 1947 narrative, Bowell—who arrived in Canada as an immigrant child, served 50 continuous years as a Canadian lawmaker, and governed as Prime Minister—is legally deemed to have never been a Canadian citizen. This completely exposes the historical collapse of the 1947 start date.
1896	Franchise withdrawn	Laurier Liberals revert to provincial voters' lists; federal franchise withdrawn from Indians.
1896 (May 2)	Prime Minister Sir Charles Tupper, Official Election Manifestos	In his public executive manifestos, Tupper explicitly calls upon the "citizens of Canada" to defend the centralized federal union and national infrastructure. This formal deployment from the prime minister's chair provides definitive proof that the executive branch recognized a distinct, rights-bearing category of Canadian citizens fifty-one years before the 1946 Act.
1901	Census of Canada, Royal Proclamation, Instructions to Enumerators (Sidney Fisher, Minister of Agriculture)	"Nationality is a term of more or less conventional meaning. But as it applies by right of established usage to the citizens of Canada — the expression "new nationality" was in this sense introduced in the speech with which the Governor General opened the first Canadian Parliament — it is proper to use Canadian in column 16 as descriptive of every person whose home is in the country and who has acquired rights of citizenship in it." "Canadian," "National," and "citizen" mean the same thing.
1904 (Jan 18)	Prime Minister Sir Wilfrid Laurier, Canadian Club of Ottawa Address	"I am a Canadian. Canada is the inspiration of my life. I have had before me as a pillar of fire by night and a pillar of cloud by day a policy of true Canadianism, of moderation, of conciliation." It Rebuts "Divided Allegiance": This quote proves that early Prime Ministers did not think of themselves merely as generic imperial administrators. They answered to a sovereign, localized standard of "true Canadianism" long before bureaucrats formalized it with paperwork.
1905 (Sept. 1)	Prime Minister Sir Wilfrid Laurier, Autonomy Act Address (Edmonton, Alberta)	Explicitly pairs imperial subjecthood with a distinct local citizenship for incoming immigrants, telling the crowds: "Let them be electors as well as citizens... Let them become Canadians." A direct prime ministerial refutation of the 1947 genesis myth.
1906	Employment of Aliens Act	Which used the phrase "citizen of Canada" as a settled category.
1908	Canadian passport issued	A sovereign state certifying its own nationals — presupposing a Canadian nationality, 39 years before the supposed genesis.

Year	Instrument / Event	Significance
1908	Mackenzie King mission to England (Deputy Minister of Labour)	As Deputy Minister of Labour, King invokes "the status that a citizen must maintain" and the "existing body of citizens" in official report to British authorities. In the same report, he describes Oriental immigration as the "migration of peons," calls immigrants "coolies," and records that "Canada should remain a white man's country is believed to be not only desirable for economic and social reasons, but highly necessary on political and national grounds." The man who used the word "citizen" in 1908 also demanded a white Canada. He would do both again in 1945 and 1947.
1909	Boundary Waters Treaty (United States–Great Britain), signed January 11, 1909	Established the International Joint Commission to provide the broader framework for resolving Canada–U.S. water disputes.
1910	Treaty between the United States and Great Britain relating to the boundary line in Passamaquoddy Bay, signed at Washington, May 21, 1910	Finalized the specific maritime border in Passamaquoddy Bay. Ratified by the United Kingdom June 23, 1910.
1910	Immigration Act, 1910 (R.S.C. 1927, c. 93)	Statutorily defines "Canadian citizen" (s. 2(b)): (i) a person born in Canada who has not become an alien; (ii) a British subject who has Canadian domicile; (iii) a person naturalized under the laws of Canada who has not subsequently become an alien or lost Canadian domicile. Section 2(b)(ii) and s. 41 grants immunity from deportation — the protective right pre-1947 status conferred.
1913	*Attorney General for British Columbia v. Attorney General for Canada*, 1913 CanLII 398 (UK JCPC), [1914] A.C. 153	Judicial Committee of the Privy Council held that the province's proprietary interest in its foreshore derived from its original grant — a conveyance from the Crown predating the statute that later confirmed it. Declined to decide the three-mile limit question, but the decision was premised on the assumption that the waters themselves were subject to Canadian sovereignty. Cited by the Supreme Court of Canada in Reference re *Offshore Mineral Rights*, [1967] S.C.R. 792 at 174.
1914	British Nationality Act (adopted in Canada as the Naturalization Act)	Validates differences in definition and treatment of British subjects in the Dominions — acknowledging the layered statuses.
1915	Imperial Act	Age of majority set at 21; derivative claims through father only, first generation abroad.
1916	Minister of the Interior William James Roche, writing in Canada West: The Last Best West, reassures American settlers that	A senior Cabinet minister invokes "Canadian citizen" as a settled legal category with distinct obligations, thirty-one years before the supposed creation of Canadian citizenship.

Year	Instrument / Event	Significance
	conscription "would apply to Canadian citizens only"	
1917 / 1940	Military Service Act, 1917; National Resources Mobilization Act, 1940	While the conscription statutes legally bound "British subjects resident in Canada," the executive branch and senior ministers calibrated the political obligation of the draft around Canadian citizenship — Minister Roche assured settlers in 1916 that conscription would apply to "Canadian citizens only.
1919	Section 41 amendment to the Immigration Act (post-Winnipeg General Strike)	Allows deportation of anyone who is not a Canadian-born or naturalized citizen. Canadian citizenship confers immunity from deportation — a legal right of the most fundamental kind.
1919	Treaty of Versailles — separate Canadian signature	Marks acquisition of sovereignty; presupposes citizens.
1919 (Sep 2)	Arthur Meighen, Versailles Peace Conference Representation Debates	"I affirm here as a Canadian citizen, that as a distinct entity within the British Empire and as a distinct self-governing entity we are entitled to a voice... "
1920	League of Nations — Canada is a founding Member.	The League did not admit dependencies; Canada's seat at Geneva marked international recognition of Canadian autonomy — and of Canadian citizenship.
1920	Bill 14 (compulsory Indian enfranchisement)	Duncan Campbell Scott, in Parliament: "Our object is to continue until there is not a single Indian in Canada that has not been absorbed into the body politic." Boards of inquiry to examine fitness of Indians to become citizens.
1920	Unanimous Resolution on Extraterritoriality	Minister of Justice seeks extraterritorial enforcement of laws "against Canadian citizens who might violate those laws outside the territorial limits of the Dominion."
1920 (Aug 17)	"Canadian Citizenship Certificates Are Issued," The Victoria Daily Times	The Dominion Immigration Department announces the issuance of certificates of Canadian citizenship — small cards bearing the holder's photograph, name, date of birth, and birthplace. Applicants needed only to supply a photograph and "proof of Canadian citizenship." The state issued certificates in proof of Canadian citizenship twenty-six years before the supposed genesis — the same "proof of citizenship" language used at the January 3, 1947 ceremony.
1921	Prime Minister Arthur Meighen, Executive Imperial Conference Briefs	Protests imperial centralization by standing up as a self-declared “Canadian citizen,” explicitly declaring that Canada's domestic citizenry holds an inherent right to an autonomous sovereign voice in international affairs. This prime ministerial declaration proves the executive branch actively utilized the vocabulary of independent citizenship twenty-five years before the 1946 Act.
1921 (Mar 10)	House of Commons Debates, 13th Parliament, 5th Session, Vol. I, pp. 771–772	Introduced by the Attorney General of Canada and Minister of Justice, Charles Doherty as general law, Bill No. 11 (Canadian Nationals Act); King scrutinizes and supports. The Minister and

Year	Instrument / Event	Significance
		the future Prime Minister both affirm the layered status — Canadian nationals as a defined subset of British subjects — twenty-six years before the supposed genesis.
1921 (May 3)	Canadian Nationals Act (11-12 Geo. V, c. 4; R.S.C. 1927, c. 21)	Canadian Nationals Act becomes law. Declares Canadian nationality and citizenship synonymous; every national is a citizen. Provides for renunciation of Canadian nationality.
1921	Sixth Census of Canada, 1921	*Nationality* — Each person of Canadian citizenship or nationality, whether such by birth or by naturalization, is recorded as a "Canadian."
1921	Senate Debate on the Canadian Nationals Act, April 22, 1921, p. 289	Sir James Lougheed (government) and Napoléon Belcourt (opposition) agree: "national," "ressortissant," and "citizen" are synonymous.
1921	Sir Robert Borden, *Canadian Constitutional Studies*	"It is the Parliament of Canada alone which constitutionally can determine and prescribe the burdens to be borne by this Dominion or by any of its citizens for the purposes of this or any other war."
1922	Winston Churchill, House of Commons	"The Canadian Legislature has power to define who are Canadian citizens for certain purposes, and has, in fact, done so for the purposes of the Canadian Immigration Acts." (HC Deb 06 July 1922 vol. 156 cc569-70)
1922	UK Attorney-General Sir Douglas Hogg	"I have had the industry to look up the Canadian Statutes, and I find that... in the Immigration Law of Canada, which was passed as long ago as 1910, [the phrase 'Canadian citizen'] is defined in that Act, and there are a variety of provisions which give certain privileges to Canadian citizens which are not accorded to other British subjects." (HC Deb 27 November 1922 vol. 159 cc327-87)
1923 (Feb 5)	Vancouver naturalization court admits Japanese applicants to Canadian citizenship	The Vancouver Province reports Judge Cayley, on instructions from the federal Secretary of State, ruled Japanese applicants must be treated like other nationalities. The state's own machinery granted Canadian citizenship to Japanese immigrants — 24 years before the supposed genesis, and 22 years before P.C. 7356 revoked the status.
1923	Halibut Treaty — Convention for the Preservation of the Halibut Fishery of the Northern Pacific Ocean, signed March 2, 1923	Canada's first treaty negotiated and signed entirely on its own, with no British involvement. First international agreement to conserve ocean fish stocks. Assertion of autonomous standing in international law; foundation for the Balfour Declaration (1926).
1923	Chinese Exclusion Act registration regime begins	Canadian-born Chinese (e.g., Douglas Jung, born in Victoria, BC) forced to register as "stateless registered aliens" — contrary to the existing law (see 1938). Registration card: "This certificate does not establish legal status in Canada."

Year	Instrument / Event	Significance
1924	Liquor Treaty (US); Treaty respecting Smuggling Offences (US); Copyright Arrangement	Negotiated and signed autonomously by Canada. The Copyright Arrangement made the Canadian Copyright Act, 1921 and the U.S. Copyright Act, 1909 reciprocal between the citizens of each country — international recognition of Canadian citizenship 23 years before the supposed genesis.
1924	Douglas Jung registered under the Chinese Immigration Act, 1923	Born in Victoria in 1924 and registered under C.I. 45 that June, Douglas Jung's certificate bore the notation "*This certificate does not establish legal status in Canada*."
1925	Mackenzie King's address, Berlin (Kitchener), Ontario	"The opportunities and responsibilities implied in being a citizen of Canada" — delivered 22 years before the supposed genesis, recalling a settled status.
1926	Naturalization certificate of Jacob Rosenberg, March 17, 1926, including minor son Fred (then Rosenberg)	Fred Rose "attained Canadian citizenship when, as a minor, his name was included in the naturalization certificate of his father" — citizenship acquired derivatively through a parent, 21 years before the supposed genesis.
1926	Balfour Report	Declares that Great Britain and the Dominions are "autonomous Communities within the British Empire, equal in status, in no way subordinate one to another in any aspect of their domestic or external affairs, though united by a common allegiance to the Crown, and freely associated as members of the British Commonwealth of Nations." First proposed by Canadian Prime Minister Mackenzie King and South African Prime Minister J.B.M. Hertzog, the Report confirms Canada's status as a fully self-governing nation. Its principles are subsequently incorporated into the Statute of Westminster of 1931.
1927	Canadian Arctic Expedition (which included Dr. Frederick Banting)	Subsequent Government document referred to the Inuit as "British subjects and citizens of Canada."
1927	Diubaldo, *The Government of Canada and the Inuit*, 1900–1967 (INAC, 1985), p. 36	Government's own history: Inuit "viewed, legally, as Canadian citizens pure and simple" — 20 years before 1947.
1928	Canadian legislation first refers to "territorial waters of Canada"	Parliament amends the Customs Act (S.C. 1928, c. 16, s. 1), defining "Territorial waters of Canada" as "the waters forming part of the territory of the Dominion of Canada" — three marine miles generally, twelve for Canadian-registered vessels. The Supreme Court of Canada observes: "Not until 1928 did Canadian legislation refer to these waters as the 'territorial waters of Canada'" (Reference re *Offshore Mineral Rights*, [1967] S.C.R. 792 at 816).
1929	House of Commons Debate on Canadian Nationality, February 15, 1929	Bissett's resolution; Bennett: "We are British subjects; we are Canadian citizens." Minister of Trade and Commerce James Malcolm: census shows 8,412,383 of 8,788,483 enumerated as "Canadian nationality." Bissett: "Everyone born in Canada is

Year	Instrument / Event	Significance
		entitled, under the laws of our country, to call himself a Canadian, when asked as to his nationality. This applies to all persons of all races, even to Chinese, negroes *(sic)* and Indians born in this country."
1931	Statute of Westminster, 1931, s. 3	Grants Dominion Parliament full power to legislate extraterritorially — statutory confirmation of sovereignty and its citizens.
1931	Canadian passport of Koozma Tarasoff and wife Polly (No. 17928, issued November 13, 1931, Governor General Earl of Bessborough)	National status line: "Naturalized in Canada, 3rd September 1912, of Russian origin." A Canadian instrument, issued by the Governor-General, recording "Naturalized in Canada" as the bearer's operative status — nineteen years before the supposed genesis. Corroborates the layered-status argument: a distinctly Canadian naturalization, recorded on a distinctly Canadian passport.
1932	Amendments to the Imperial Act	Derivative claims extended to mothers for children born out of wedlock; custody provisions introduced for widows and divorcees. The gendered stripping machinery persists, softened but intact.
1933	House of Commons Debates, March 24, 1933	Parliamentarians debate the "existence and legal rights of Canadian citizenship" as a settled premise.
1933	Radio broadcast, CNRO (Ottawa), February 21	Government official: Indians to advance "until they are ready to take their place on an equal footing with our white neighbours as full Canadian citizens."
1937	Imperial Conference	At the Imperial Conference in London, the Canadian delegation sets out the three-tier structure of Canadian status: British Subject, Canadian National, Canadian Citizen, with the right to enter or remain turning on citizenship.
1937	Kiwanis Club speech, May 14, given by Dr. Harold McGill, Deputy Superintendent General of Indian Affairs	Same policy themes: Indians to advance "as full Canadian citizens."
1938	*Shin Shim v. The King*, [1938] SCR 378	SCC holds a Canadian-born woman of Chinese ethnicity is a Canadian citizen by birth under the 1910 Act, exempt from the head tax and entitled to court access.
1938	*Reference re Alberta Statutes*, [1938] SCR 100 (Cannon J.)	"Every inhabitant in Alberta is also a citizen of the Dominion." The province "cannot interfere with his status as a Canadian citizen and his fundamental right to express freely his untrammelled opinion."
1939	Inuit added as Indians under the Indian Act (April 5)	Administrative confirmation of the Crown's relationship with Inuit as members of the political community.

Year	Instrument / Event	Significance
1939–45	WWII Death Certificates ("Overseas Casualty of War")	Box (6) records "Canadian" as citizenship. Official Statement of Purpose: "Canadian" describes a person "born in Canada or who has rights of Citizenship in Canada," tied to allegiance.
1940 (Mar 7)	"Many Aliens Now Seeking Citizenship," Canadian Press	The state's own wire service reports 2,000 naturalization applications a month at 375 courthouses; aliens seek "Canadian citizenship" through state machinery seven years before the supposed genesis.
1941	Administrative Report on the Eighth Census of Canada, 1941, pp. 11, 34	"Every Canadian citizen or national, i.e., every person owing political allegiance to Canada, is enumerated in Column 24 of the census schedule as 'Canadian.'" Cites the Immigration Act (R.S.C. 1927, c. 93) and the 1921 Canadian Nationals Act (R.S.C. 1927, c. 21) as the legal bases.
1941	Naturalization certificate issued to Peter Masten Skewitt (No. 37334, Series E, July 16, 1941)	The Crown issues a numbered, dated, formal instrument of status — presupposing a Canadian status to naturalize into, six years before the supposed genesis.
1942	*Battle of Brains – Canadian Citizenship and the Issues of War* (King's Printer)	Given to soldiers heading to war: "From whatever walk of life, from whatever part of Canada you have come, that groove in which you move and have your being is dependent upon your Canadian citizenship."
1942	Canadian Army Attestation Paper (Form CA(A)) — Charles Murray White, 2nd Battalion Algonquin Regiment, May 13, 1942	Canadian Army Attestation Paper (Form CA(A)), completed under oath with penal consequences for false statements, requires the recruit to state his citizenship. Charles Murray White, 2nd Battalion Algonquin Regiment, answers "Canada." The state's own enlistment machinery presupposes Canadian citizenship four and a half years before the supposed genesis.
1944 (Mar 1)	"War brides land in Canada," Canadian Army Newsreel, CBC Archives	A Canadian Army Newsreel welcomes Canada's newest citizens — the state's own military communication apparatus using the term "citizens" for arriving war brides, three years before the supposed genesis.
1944 (Sep 21)	P.C. 7318 (under the War Measures Act)	Grants foreign-born children of Canadian soldiers "the same status as the father" — transmissibility of citizenship.
1944	British Pathé Newsreel, "British War Brides Arrive In Canada" (Montreal)	Broadcast narration: "...a new life awaits these mothers and their children who are to become Canadian citizens." An independent British newsreel uses "Canadian citizens" as ordinary public language three years before the supposed genesis — and describes the immigration process as conferring the status, corroborating P.C. 7318 and the war-bride pamphlet.
1944 (Dec 9)	'A way to a new life' for war brides," Canadian Army Newsreel, CBC Archives	Films and broadcasts the departure of soldiers' wives and children as they begin their journey by train to British ports — the state's machinery executing the dependents program in real time, within the operational window of P.C. 7318 (effective September 21, 1944).

Year	Instrument / Event	Significance
1945	Circular Telegram, Secretary of State for External Affairs, to London and Commonwealth capitals	"People who are now Canadian citizens under existing legislation will be recognized as Canadians under the (new) Bill." (Canadiana Archive, ooe.b1603413E_010)
1945	P.C. 1945-858 (under the War Measures Act)	Grants foreign-born children of Canadian soldiers "the same status as the father" — transmissibility of citizenship. Revokes P.C. 7318. Confirms the Crown operated this regime from at least 1944.
1945	Passport of Peter Masten Skewitt	Nationality line: "British subject by naturalization, Canadian Imperial Certificate No. 37334, Series E, dated Sixteenth July, 1941." The Crown's own instrument demonstrates the simultaneous statuses — British subject and holder of a distinctly Canadian certificate — in one line. Corroborates the layered-status argument.
1945	P.C. 3227 (Merchant Seamen Special Bonus Order)	"Said payment to any member of the crews of the said ships who is either a Canadian Citizen or resident in Canada and who was engaged and discharged in Canada." "Seaman" defined to include "any person being a Canadian citizen or resident in Canada who served on any of the cable ships... was engaged and discharged in Canada."
1945	Ontario Death Registration (Form 6), Alex Eli Laba, Canadian Army, registered June 21, 1945	The state's own death registration records the citizenship of a soldier killed in action in Belgium (December 6, 1944) as "Canadian" — eighteen months before the supposed genesis. The informant was the Director of Records, Department of National Defence — the state itself certified this information, not a family member. Racial origin recorded as Austrian, yet citizenship recorded as Canadian — quietly rebutting the "British subjects only" narrative.
1945 (Oct 22)	Secretary of State Paul Martin Sr. introduced Bill No. 20 *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* (S.C. 1946, c. 15).	Paul Martin admits that Canadian citizenship already exists. He states: “the bill I am introducing is in reality a comprehensive *amendment* of the Naturalization Act.” He then said: "It should not be concluded from this that the bill in reality makes any sweeping change or that there has not previously been any such thing as Canadian nationality. Despite what one often hears to the contrary, there has been a Canadian nationality."
1945 (Dec 15)	P.C. 7355, P.C. 7356, P.C. 7357 (War Measures Act) — The Japanese Canadian Orders	P.C. 7355 (Deportation Order) divides those affected into four classes: Japanese nationals; naturalized British subjects; natural-born British subjects (s. 2(3): "Every natural born British subject of the Japanese race of sixteen years of age or over resident in Canada who has made a request for repatriation may be deported to Japan"); and wives and children under sixteen. P.C. 7356 (Revocation of Status): "Any person who, being a British subject by naturalization under the Naturalization Act, Chapter 138,

Year	Instrument / Event	Significance
		R.S.C. 1927, is deported from Canada under the provisions of Order in Council P.C. 7355 of 15th December, 1945, shall, as and from the date upon which he leaves Canada in the course of such deportation, cease to be either a British subject or a Canadian national." P.C. 7357 (Loyalty Commission): any person recommended for deportation "shall, as and from the date on which he leaves Canada in the course of such deportation, cease to be either a British subject or a Canadian national." The state strips citizenship — proving the status existed to be stripped.
1945 (Dec 28)	P.C. 7414	Continues the Orders in force under the National Emergency Transitional Powers Act, 1945 — extending the machinery beyond the formal end of the war.
1946	P.C. 411 (February 5, 1946) Establishes the Royal Commission (Taschereau–Kellock) to investigate Soviet espionage disclosed by the Gouzenko affair. The Commission's findings led to the arrest and conviction of Fred Rose, MP for Cartier.	Confirms Rose had been a "Canadian citizen" since 1926 — granted "the status of Canadian citizen and the freedoms, advantages and facilities of his land of adoption."
1946 (Feb 20)	*Reference to the Validity of Orders in Council in relation to Persons of Japanese Race*, 1946 CanLII 46 (SCC), [1946] SCR 248	SCC upholds the Orders; the Court splits. Four justices (Hudson, Rand, Kellock, Estey) hold subsection 2(4) of P.C. 7355 (wives and children) ultra vires. Rand and Kellock hold the compulsory deportation of natural-born British subjects ultra vires, and P.C. 7356 ineffective to extinguish the status of a British subject by naturalization. Rand J.: a deported natural-born Canadian faces "a *de facto* but not *de jure* entry upon Japanese territory: no citizenship rights in Japan and a retention of the rights of Canadian citizenship."
1946	*Co-operative Committee on Japanese Canadians v. A.-G. Canada*, [1947] AC 87 (UKPC)	UK Privy Council upholds Orders in Council stripping natural-born Canadians of nationality — proving the status existed to be stripped.
1946	War Brides arrival at Pier 21; pamphlet *Dock to Destination*; Prime Minister King's speech	Pamphlet: entry "automatically makes you a Canadian citizen." King called them, "Canada's newest citizens."
1946 (Apr 2)	House of Commons Debates, 20th Parliament, 2nd Session, Vol. 1, p. 503 (Martin)	Paul Martin introduces the Citizenship Bill for second reading. The parliamentary record itself confirms the government understood the Act as codifying an existing Canadian nationality, not creating one.
1946 (May 2)	Martin: naturalized citizens who returned to Germany or Italy "will be excluded"	Parliament legislates exclusion from a status it claims to create — presupposing the status already exists

Year	Instrument / Event	Significance
1946	House of Commons Debates, Bill No. 7 (1946 Act)	Maxime Raymond: "We cannot renounce what we do not have."
1946 (Oct 23)	J.H. Fisher, "Citizenship Bill To Bar Naturalized Canadians Who Fought For Hitler"	Martin: "it is not in keeping with our position as a nation that the residents of this country are unable to describe themselves as Canadian citizens"; the bill provides that "anyone serving in the armed services will automatically become a Canadian citizen"; "Native-born Canadians will all remain British subjects."
1946 (Dec)	Robertson, Robert G. Memorandum for the Prime Minister, December 10, 1946; Citizenship Branch planning document (MG 26 J 4, Vol. 244)	Kerwin (Acting Chief Justice, SSC) and Coleman opposed *de novo* cases at the ceremony; Martin overruled them. Robertson warned Certificate No. 1 to King "could easily create misunderstanding." The government's own records document the ceremony as political staging.
1947	Jan 1: *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* comes into force. Jan 3: Ceremony	Chief Justice Rinfret affirms King and 13 others' existing citizenship; 12 were sworn in as new citizens.
1947	Mackenzie King's speech at the citizenship ceremony, Supreme Court of Canada, January 3, 1947	King: "Some of us who have received certificates tonight, have enjoyed those rights all our lives." King: "As Canadians we have a national citizenship, a commonwealth citizenship, and a world citizenship." *The first citizen myth, refuted by the supposed first citizen himself*.
1947 (Jan 3)	The Chief Justice affirmed King's existing citizenship.	“What you now do here, is for all of you, no new thing but rather a re-affirmation of what your lives have been...”
1947 (Jan 22)	Mackenzie King's private diary.	King records that Louis St. Laurent "fought strongly and bravely for deporting practically all who could be deported including some Canadian citizens on the score that they would increase in population and demands would be made later to have the Japanese in Canada given the same rights as the white population." A future Prime Minister, three weeks after the supposed genesis, explicitly recognized "Canadian citizens" as an existing class — and argued for their deportation.
1947 (Jan 24)	Repeal of P.C. 7356	PMO press release announces repeal of P.C. 7356, *restoring* "the Canadian status" of naturalized persons of Japanese origin.
1947	*Canadian Bar Review* article on the new Citizenship Act (written by the Canadian Citizenship Branch, Dept. of the Secretary of State)	The government's own published explanation confirms the 1921 Canadian Nationals Act "accepted as the basis of Canadian nationality" the definition of "Canadian citizen" as given in the Immigration Act — *legislation by incorporation*, confirmed by the government's own hand, in the very year of the supposed genesis.
1947	Provincial Elections Act Amendment Act, S.B.C. 1947	British Columbia restored the provincial franchise to Chinese Canadians.

Year	Instrument / Event	Significance
1947–48	The Retreat: Political blowback and partial enforcement	Confronted with opposition from MPs across parties, churches, labour organizations, and civil liberties associations, the King government abandons full enforcement of the deportation scheme. Thousands who had signed repatriation requests — many under duress — are permitted to revoke them and remain. Of those swept into the machinery, 3,964 Japanese Canadians — including 700 children born in Canada — are deported to a Japan most had never seen. The government's retreat concedes what its legal arguments denied: that the deportation of Canadian citizens was indefensible.
1948	British Nationality Act, 1948 (U.K.); Citizenship Law (Canada) Order, 1948	The imperial framework the 1950 Act adjusts.
1948	Dominion Elections Act amendment, S.C. 1948	The federal government removed race as grounds for exclusion from the federal franchise.
1948	Terms of Union, Term 43	Promises extension of "the Canadian citizenship laws" — presupposes the laws existed.
1949 — April 1	Statute Law Amendment (Newfoundland) Act, S.C. 1949, c. 6, s. 44A	Deeming provision backdates citizenship to acquisition of domicile — Parliament's own textual admission.
1950	Newfoundland (Consequential Provisions) Act, 14 Geo. 6, c. 5 (U.K.)	The imperial clean-up statute the Crown misuses as a rigid timeline.
1950	Citizenship Act amendment	Adopts the British Nationality Act 1948 framework; "British subject" and "Commonwealth citizen" made synonymous, retrospectively. Parliament thereby acknowledged that the two labels described one status Canadian citizens already held — reinforcing that the 1946 Act codified, rather than constituted, Canadian citizenship.
1951	*Winner v. S.M.T. (Eastern) Ltd.*, [1951] SCR 887 (Rand J.)	"There is but one Canadian citizenship" derived from the 1867 constitutional architecture.
1957	Revocation of Fred Rose's Canadian citizenship	Rose was a recognized Canadian citizen with legal rights of citizenship since 1926 — twenty-one years before the supposed start date.
1958	"Fred Rose amendment" to the Citizenship Act	Minister of Citizenship and Immigration Ellen Fairclough introduced the amendment specifically so that such a removal could never happen again — the state itself conceding its revocation machinery had gone too far.
1967	*Reference re Offshore Mineral Rights*, [1967] SCR 792	SCC (unanimous): Canada became sovereign between 1919 and 1931; recognized by international law as having rights in the territorial sea.

Year	Instrument / Event	Significance
1967–68	Amendment to the Canadian Citizenship Act, S.C. 1967-68, c. 4, s. 9	Adds the spousal category — Parliament itself amended the "rigid" rules.
1970	Canadian Citizenship Act, R.S.C. 1970, c. C-19, s. 40	Consolidates the Newfoundland provisions.
1970	Senator Roméo Dallaire's citizenship cancelled	Cancelled on his 24th birthday (June 25, 1970) under the 1947 Act's age-based loss provision. Later a Companion of the Order of Canada, Dallaire called the process "absolutely inhuman" and condemned it as "bureaucratic terrorism." Proof that even Parliamentarians are not immune.
1977	Feb 15: Current Citizenship Act comes into force	Ends British subject status for most Canadians — completing the separation of the layered statuses that began in 1867. Automatic loss of citizenship through the "responsible parent" mechanism is abolished.
1978	Driedger, Elmer. "Statutes: The Mischief Rule," Canadian Bar Review 56, p. 264	Leading authority on statutory interpretation: the presumption against retrospective application does not apply to status. Reinforces the argument that the 1946 Act was declaratory, not constitutive. (Cited in Part XII-E.)
1982	Apr 17: Constitution Act, 1982; Charter of Rights and Freedoms	Completes Canada's distinct constitutional identity. Every citizen guaranteed rights under a wholly Canadian constitutional order.
1986	CP 14, 07-1986 — Government comparative table of citizenship loss provisions	The state's own documentation traces the derivative-loss scheme from the Naturalization Act, 1868 through the Imperial Act, 1915, the amendments of 1932, and into the Citizenship Act itself — a century of citizenship stripping, documented by the state.
1997	*Benner v. Canada (Secretary of State),* [1997] 1 S.C.R. 358	Iacobucci J.: "Immutable characteristics arising at birth are generally more likely to be correctly classified as a 'status' than are characteristics resulting from a choice to take some action." Citizenship, acquired by birth, is a status — not a privilege. (Cited in Part XII-E.)
1981 (Jan 19)	Marcus Van Steen, "Citizen chaos," The Toronto Sun	A citizenship judge repeats the 1947 myth; the column corrects him: the 1947 Act "was passed to clarify Canadian citizenship, not to create it"; Laurier, Mair, and Macdonald spoke of Canadian citizenship long before 1947.
1995 (Oct 24)	"Throwaway Citizens," The Fifth Estate, CBC-TV	The state's own public broadcaster documents the deportation of nearly 4,000 Japanese Canadians against their will under a "disloyalty" policy. The documentary's title itself — "Throwaway Citizens" — presupposes the status existed to be thrown away. Features the King diary admission (January 22, 1947) and cabinet records of the December 15, 1945 Orders in Council.
2001	Federal Law-Civil Law Harmonization Act (S.C. 2001, c. 4)	Obliges the federal government to respect both the common law and the civil law in the interpretation of federal legislation — confirming bijuralism as a constitutional principle.

Year	Instrument / Event	Significance
2000 / 2007	*Solis v. Canada* (2000), 186 D.L.R. (4th) 530 (FCA); *Taylor v. Canada*, (2007) FCA 349	Federal Court of Appeal cites Hogg maxim that "the concept of citizenship has no meaning apart from statute" — but only as obiter; both cases decided on unmet qualifications.
2004	*Haida Nation v. British Columbia (Minister of Forests),* 2004 SCC 73	Foundational authority for the Honour of the Crown doctrine: "The Honour of the Crown is always at stake... It is not a mere expression of wishful thinking. It is a legal principle." The Crown's promises of citizenship — to soldiers, war brides, and the enfranchised — are legally binding. (Cited in Part V-C.)
2006 (Oct 4)	Press conference — Hon. Andrew Telegdi, Bill Siksay, Senator Roméo Dallaire (Charles-Lynch Press Conference Room)	Condemnation of the government's appeal in the Joe Taylor case (Federal Court, Martineau J., September 1, 2006). Dallaire: "bureaucratic terrorism."
2009–2015	Citizenship Act amendments	First-generation limit imposed on citizenship by descent — creating a new class of Lost Canadians.
2012	Secret Department of Justice Report to Minister Jason Kenney	Concedes: "Changing the date upon which Citizenship as a legal status was created is legislatively possible" and acknowledges the pre-1947 status of "Canadian national." Recommended against the change solely for practical/political reasons.
2013	*Manitoba Metis Federation Inc. v. Canada* (AG), 2013 SCC 14	The Attorney General of Canada concedes, and the SCC agrees, that the Métis were "full citizens of Canada" from 1870.
2022	Minister of Indigenous Services Patty Hajdu, statement on the Nicholas case	"In return, they gained basic entitlements, such as, Canadian citizenship, the right to vote in Canadian elections, the right to hold land in fee simple, and freedom from compulsory residential school attendance for their children."
2025 (Mar 17)	Prime Minister Carney, remarks in Paris — "Canada is a reliable, trustworthy and strong partner of France"	His use of "trustworthy" — the government's own claim of trustworthiness, against which the citizenship record must be measured.
2025 (Dec 15)	Bill C-3	Removes the first-generation limit; citizenship by descent restored for Lost Canadians.
2026	Bill S-2, An Act to amend the Indian Act (restoration of status to enfranchised persons and their descendants)	Restores Indian status to the enfranchised and their descendants. Forces the unavoidable question: if citizenship did not exist before 1947, what did enfranchisement confer? Either it conveyed citizenship (which existed) or the Crown took status for an empty promise. There is no third option. (Cited in Executive Summary, Part V-C, Part XXII).
2026 (Jan 20)	Prime Minister Carney, remarks at World Economic Forum Annual Meeting, Davos	"We are a stable, reliable partner – in a world that is anything but." The government's own claim of stability and reliability, against which the June 2026 citizenship suspensions must be measured.

Year	Instrument / Event	Significance
2026 (June 1)	Prime Minister Carney declares: "The protection of citizens is the most fundamental responsibility of government" (news release on combatting antisemitism)	Establishes the government's own standard, against which the same-month suspension of ~100 citizens by email must be measured.
2026 (June)	IRCC suspensions — Citizenship Minister Lena Diab	Approximately 100 Lost Canadians — recently welcomed under Bill C-3 — have citizenship suspended and passports revoked via email, without due process. It was done with Citizenship Minister Diab's blessing. The machinery of P.C. 7356 operates by email now.
2026 (June–Sept)	Reinstatements	Almost all suspended citizens reinstated — an admission that the suspensions were wrongful and violated sections 6(1) and 7 of the Charter. The government still treats citizenship as a privilege — not a right.
2026 (Sep 17)	Prime Minister Carney, address to the European Parliament, Strasbourg — "Our commitment to the rule of law, and our unyielding defence of human dignity, individual freedom, and democracy"	The government continued to claim rule-of-law commitment three months after the June 2026 suspensions.
Present	Canadian Passport (issued under common law royal prerogative)	Photo page: nationality "Canadian." Dual-citizenship warning: "your other nationality" — confirming citizenship and nationality remain synonymous.
Present	Library and Archives Canada, "Citizenship and naturalization records" research guide (canada.ca)	The government's own archival institution states that pre-1947 naturalization allowed people to "become citizens"; describes Montréal Circuit Court files (pre-1947) as applications "for citizenship"; and categorizes "citizenship and naturalization records from 1854 to the present" as continuous — contradicting the 1947 genesis narrative. The page itself states that "before 1947, people who were British subjects by birth did not need to be naturalized" — if naturalization conferred only British subjecthood, the process would have been redundant for those already holding it by birth.
Present	Oath of Allegiance (Parliamentarians, Armed Forces, new citizens)	Sworn to the Crown in right of Canada — the living thread of allegiance from Calvin's Case (1608) to today.

PART IX — THE PARLIAMENTARY DEBATES

A. October 22, 1945 — House of Commons

In debating the forthcoming citizenship legislation — *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* — numerous Members of Parliament questioned why the Bill was going forward at all. Their comments reflected the settled understanding that Canadian citizenship already existed. The government's own parliamentarians, fifteen months before the supposed genesis, affirmed the pre-existence of the status.

B. 1946 — House of Commons, Bill No. 7 (Second Reading, April 2, 1946)

The exchange between Paul Martin Sr. (Secretary of State) and Maxime Raymond (Bloc Populaire Canadien) is preserved in Hansard (20th Parliament, 2nd Session, Vol. I, 1946, pp. 1028–1029):

> **Mr. RAYMOND:** "Will the minister be kind enough to tell me what addition is made by this bill to what we already had in our statutes? The purpose of this bill is to create a Canadian nationality, but we already have an act... entitled, 'An act to define Canadian nationals and to provide for the renunciation of Canadian nationality.' That act was passed in 1921. At the end of the act will be found a declaration of renunciation of Canadian nationality. We cannot renounce what we do not have. We already have in this country a Canadian nationality and I should like to know if anything is added by this [citizenship] bill."
>
> **Mr. MARTIN:** "The hon. gentleman asks what is done by this bill that is not done by the existing law..."
>
> **Mr. RAYMOND:** "It was creating a Canadian nationality."
>
> **Mr. MARTIN:** "My hon. friend says that it was creating a Canadian nationality, but with great respect I say that it was not. What the act in its specific terms did was to give a definition of 'Canadian citizenship' *by reference*..."
>
> **Mr. RAYMOND:** "When the minister spoke in the house on October 22 he said: 'Despite what one often hears to the contrary, there has been a Canadian nationality.' As I understand it, this [citizenship] bill does not create a Canadian nationality because we had it before. We cannot create what we already have. As I stated before, there is a schedule in the Canadian Nationals Act which provides for the renunciation of Canadian nationality. We cannot renounce what we do not have."
>
> **Mr. MARTIN:** "I do not want to get into a metaphysical argument with my hon. friend as to what nationality means. I can only say to him what I have already said, perhaps too often, and accentuate it a little by pointing out that the first point to be considered in reading together the two sections of the Canadian Nationals Act and the Immigration Act is that the present Canadian law provides for two distinct classes of person who would come under the definition of 'Canadian.' A person may be a Canadian national and a Canadian citizen. That is the law as it now stands."

Paul Martin Sr. had graduated in law from Osgoode Hall, Toronto. He was the Secretary of State. In his pleading in support of the Bill, he contradicted himself: he acknowledged that "there has been a Canadian nationality," yet claimed the Bill was necessary to create one. Maxime Raymond's argument was unanswerable: you cannot renounce what you do not have, and you cannot create what already exists.

C. The Senate Debate on the Canadian Nationals Act, 1921

Twenty-five years earlier, the Senate had clarified the very point raised by Maxime Raymond:

> **Hon. Mr. BELCOURT:** "May I draw attention to the Immigration Act [1910], in which will be found the definition of 'Canadian citizen'... It seems to me that is a complete definition, and I do not see the need for this definition unless it is for the purpose of getting a term which is exactly the same as what is used in the treaty."
>
> **Hon. Sir JAMES LOUGHEED (Minister of the Interior):** "Oh, yes; but it is not said there that a Canadian National, using the term in the treaty, is the same as a Canadian citizen. We have to pass some statute to couple up those terms."
>
> **Hon. Mr. BELCOURT:** "That may be so, but I do not think there is any distinction whatever —"
>
> **Hon. Sir JAMES LOUGHEED:** "No, there is no distinction."
>
> **Hon. Mr. BELCOURT:** "— between the word 'ressortissant' in French, or the word 'national' in English, and the word 'citizen.' I do not think there is the slightest difference in the meanings of these terms; I think they are synonymous."

(*Senate Debates*, Fifth Session, Thirteenth Parliament, 11–12 George V, April 22, 1921, p. 289.)

D. The 1929 Debate on Canadian Nationality — February 15, 1929

Eighteen years before the supposed genesis, the House of Commons debated the designation of Canadian nationality in legislation and official documents. The debate is remarkable for what it reveals about the understanding of citizenship in 1929 — and for the fact that the Leader of the Opposition and the government's own ministers all treated Canadian citizenship as an existing, operative status.

The resolution. Mr. E.D.R. Bissett (Springfield) moved:

> "Whereas Canada has by mutual consent of those concerned, now attained a position of equality in the commonwealth of nations which makes up the British Empire; and whereas Canada is a member of the League of Nations having representation on the council thereof; and whereas by an enactment of the parliament of Canada 11-12 George V, chapter 4, which said legislation now appears as 'Canadian Nationals Act,' chapter 21 of the revised statutes of Canada, 1927, the terms 'Canadian nationality' and 'Canadian nationals' are defined. Therefore be it resolved: (1) That persons born in Canada (or otherwise, defined as Canadian nationals) shall be described as being of Canadian nationality in all legislation and official and other documents."

Bissett's statement of the law. In support of the resolution, Bissett recited the definition of "Canadian national" from the 1921 Act, which incorporated the definition of "Canadian citizen" from the Immigration Act, 1910 — and drew the universal conclusion:

> "It is thus quite clear that as the result of this legislation everyone born in Canada is entitled, under the laws of our country, to call himself a Canadian, when asked as to his nationality. This applies to all persons of all races, even to Chinese, negroes *(sic)* and Indians born in this country."

This statement, made in Parliament in 1929, directly contradicts the "stateless registered alien" fiction imposed on Chinese Canadians under the Chinese Exclusion Act of 1923, and it confirms the incorporation doctrine: the 1921 Act adopted the 1910 Act's definition as the basis of Canadian nationality.

Bennett's confirmation of the layered status. The Leader of the Opposition, R.B. Bennett, responded:

> "We are British subjects; we are Canadian citizens."

He elaborated:

> "The essential word in all that definition is the word 'British,' which precedes the word 'subject'; and so long as we remain a dominion within an empire... our position is that of British subjects *and* Canadian citizens."

Malcolm's census figures. The Minister of Trade and Commerce, James Malcolm, confirmed the census enumeration:

> "The last census showed that of a total population of 8,788,483 those of Canadian nationality numbered 8,412,383, of which number 514,182 were Canadians by naturalization. The number of Canadians by birth was 6,832,747."

Rinfret's confirmation and the withdrawal. The Secretary of State, Fernand Rinfret, brother of Chief Justice Rinfret, confirmed the operation of the 1921 Act — *that a Canadian national must be a British subject who is a Canadian citizen* — and the resolution was eventually withdrawn on the assurance that the government would make provision for recording Canadian nationality in official documents.

The significance of the 1929 debate. Eighteen years before the supposed genesis, the House of Commons — government and opposition alike — treated "Canadian citizen" and "Canadian nationality" as existing legal statuses with defined statutory content. Bennett's words are the layered status spoken aloud in Parliament. Malcolm's figures are the government's own statistics. Bissett's statement is the universality of the status — including for Chinese, Black, and Indigenous Canadians — acknowledged in the House. The 1929 debate is not an interpretation of the law; it is the law's own contemporaries describing how it operated.

PART X — THE GOVERNMENT'S OWN ADMISSIONS

The Government of Canada has conceded the pre-1947 existence of citizenship in at least five distinct forums:

1. **Diplomatic (1945**): The circular telegram to the Commonwealth — "people who are now Canadian citizens under existing legislation."
2. **Published Explanation (1947):** In the *Canadian Bar Review* article explaining the new Citizenship Act — written by the Canadian Citizenship Branch of the Department of the Secretary of State, not by the Bar Association — the government itself confirmed: "When Canada became a member of the League of Nations it was realized that there should be a definition of 'Canadian nationals' in order to distinguish them from the nationals of other

parts of the Commonwealth who shared with Canadians the status of British subjects. To meet this need the Canadian Nationals Act was passed in 1921; it accepted as the basis of Canadian nationality for the act the definition of 'Canadian citizen' as given in the Immigration Act." This is the government's own hand, in the very year of the supposed genesis, confirming that the 1921 Act incorporated the 1910 definition *by reference* — legislation *by incorporation*, made general law.

3. **Internal Legal Advice (2012):** A secret Department of Justice report to Minister Jason Kenney conceded that "changing the date upon which Citizenship as a legal status was created is legislatively possible" — admitting the date is a policy choice, not a legal necessity.
4. **Litigation (2013):** The Attorney General argued, and the Supreme Court accepted, that the Métis were "full citizens of Canada" from 1870.
5. **Cabinet Statement (2022):** Minister of Indigenous Services Patty Hajdu, on the Nicholas case in the Supreme Court of BC (June 10, 2021), acknowledged that enfranchisement conferred "basic entitlements, such as, Canadian citizenship."
6. **Archival Description (Present):** Library and Archives Canada's own research guide, maintained on the Government of Canada's website, states that before 1947 "people born in other countries could apply to become citizens, a process known as naturalization."[11] The state's own archival institution — describing its own records — uses "citizenship" as the term for what pre-1947 naturalization conferred. It describes the Montréal Circuit Court files (pre-1947) as records "about people who applied for citizenship." It categorizes "citizenship and naturalization records from 1854 to the present" as a continuous archival series. Nor can the Crown answer that the naturalized were merely becoming "British subjects": the page itself states that "before 1947, people who were British subjects by birth did not need to be naturalized" — if naturalization conferred only British subjecthood, those already holding it by birth would have had no need of the process, and those who underwent it would have gained nothing they did not already possess. The page's own logic requires that naturalization conferred a distinct status — citizenship. The government's own archives cannot describe a century of naturalization into citizenship if citizenship did not exist.

[11] Library and Archives Canada, "Citizenship and naturalization records," Government of Canada, https://www.canada.ca/en/library-archives/collection/research-help/genealogy-family-history/immigration/citizenship-naturalization.html

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PART XI — ADMISSION AGAINST INTEREST

In *Manitoba Metis Federation Inc. v. Canada (AG)*, 2013 SCC 14, Canada argued before the Manitoba Court of Queen's Bench (2007 MBQB 293):

> "Canada says the Act was an essential piece of legislation in building the nation of Canada. It says Canada's intention in acquiring Rupert's Land and the North-western Territory was to enable Canada to create a country from sea to sea and that the Act became the instrument through which the inhabitants of Rupert's Land, other than

> Indians, would and did acquire full citizenship within the Canadian Confederation." (at para. 927)

The Court of Queen's Bench ruled for the Attorney General; the decision was upheld by the Manitoba Court of Appeal and the Supreme Court of Canada.

The Crown cannot now relitigate that position. It is an abuse of process for a party to argue both sides of the same issue in different venues. Canada told the Supreme Court that the inhabitants of Rupert's Land acquired full Canadian citizenship in 1870; it now tells its own department that Canadian citizenship began in 1947. Both cannot be true. The 2013 concession is an admission against interest: the Crown's own litigation record, accepted by the highest court, places Canadian citizenship at Confederation — not at January 1, 1947. The Crown cannot have it both ways.

PART XII — REFUTATION OF THE "CREATURE OF STATUTE" DOCTRINE

A. The Maxim Is *Obiter*

The maxim attributed to Professor Peter Hogg — "the concept of citizenship has no meaning apart from statute" — was cited by the Federal Court of Appeal in *Solis v. Canada* (Minister of Citizenship and Immigration) (2000), 186 D.L.R. (4th) 530, 2000 CanLII 15153 (FCA), and repeated in *Taylor v. Canada*, 2007 FCA 349, at para 50. In neither case was the maxim part of the *ratio decidendi*. Both cases turned on unmet statutory qualifications — not on the concept of citizenship.

An obiter dictum binds no one. It persuades only where it is sound — and as the next section demonstrates, this one is not. Even taken entirely at face value, then, the government's own authorities never made the *maxim law*. The argument holds on the government's own terms before it ever reaches the deeper error.

B. The Methodological Error

Common law interpretation is inductive, rule-based, empirical, and case-driven. The government's assertion that the "concept" of citizenship appears in no statute is a deductive category error. Few concepts are found in common law jurisdictions. The "concept" of citizenship cannot be inferred by deduction, which is inconsistent with the inductive approach of common law rules of statutory interpretation.

1. Absence from the statute book is not absence from the law. Statute is only one species of law, and silence is not negation. The common law does not begin with grand abstract theories. It begins with specific disputes between real people. Judges resolve those disputes, and from many individual decisions, general rules emerge over time. This is induction: reasoning from particular instances to general principles. It is empirical because it is grounded in observable facts and actual controversies — not *a priori* speculation. It is case-driven because the law only advances when a case raises a question that needs answering.

2. A deductive category error. The maxim presupposes that a legal concept cannot exist unless a statute defines it — a deductive leap from a general premise to a specific conclusion. Taken to

its logical conclusion, it demands that the common law behave like a civil code — that everything be written down in advance. It also confuses the absence of a statutory definition with the absence of law itself. A maxim repeated in passing cannot erase a century of state practice to the contrary.

3. Few concepts are found in common law jurisdictions. The common law does not define its foundational ideas in statutes. Negligence, consideration, fiduciary duty, trespass, malice — none of these are defined in an Act of Parliament. They exist because centuries of judges applied them in case after case, refining their meaning through concrete application. The common law is allergic to abstract definitions. It prefers to say: "We know what it is when we see it applied." To demand that the "concept" of citizenship appear in a statute is to demand that the common law abandon its own methodology.

4. The common law infers the concept inductively. To prove citizenship existed, one does not need a statute saying, "citizenship exists." One looks at the instances: *Shin Shim* (a court recognizing a birthright citizen), P.C. 1945-858 (an Order transmitting status), Section 41 (immunity from deportation), the census counting "Canadian citizens," the soldiers dying with "Canadian" on their death certificates. From these concrete, empirical instances, one induces the general rule: Canadian citizenship existed and carried legal rights. The government, by contrast, starts with the abstract premise (no statute = no concept) and deduces the conclusion (no citizenship). That is foreign to the common law method.

The synthesis. The common law does not ask, "was there a statute?" It asks, "what did the courts do, what did the Crown do, what did the people experience?" The evidence answers: the courts protected citizens, the Crown transmitted citizenship, the state conscripted citizens, and the people lived — and died — as citizens. Inductively, that evidence yields one conclusion: the status existed. The government's insistence on a statutory text is a deductive demand that the common law rejects by its very nature.

C. No Statute Defines the Concept

The Citizenship Acts of 1946 and 1977 set out the qualifications for citizenship. Neither Act defines the concept of citizenship. Thus, the claim that the "concept of citizenship has no meaning apart from statute" is an invention, not supported by statutory interpretation.

D. The Interpretation Act, R.S.C. 1985

1. **Section 33 (R.S.C. 1985, c. I-21):** Where the current Citizenship Act is silent on the definition of Canadian nationality, the Canadian Nationals Act (1921) must be read as unrepealed. Similarly, the 1946 Act is read as unrepealed to give effect to s. 3(1) of the current Act.
2. **Section 32(1):** Definitions apply to all enactments on the same subject matter, making the Immigration Act's definition of "Canadian citizen" applicable to the Chinese Immigration Act.
3. **Section 36:** The Interpretation Act's provisions apply retrospectively unless a contrary intention appears.
4. **Remedial construction (s. 12 of the *Interpretation Act*; *Rizzo*):** Section 12 deems every enactment remedial and requires "such fair, large and liberal construction and

interpretation as best ensures the attainment of its objects." In *Rizzo & Rizzo Shoes Ltd. (Re)*, [1998] 1 S.C.R. 27, the Supreme Court of Canada adopted Elmer Driedger's formulation of the modern principle: the words of an Act are to be read in their entire context, in their grammatical and ordinary sense, harmoniously with the scheme and object of the Act. Applied here, the Citizenship Act's object is to recognize and secure citizenship — not to strip standing that predated it. A purposive reading defeats the contention that the 1947 commencement created citizenship anew. Its application to the altered transitional wording of the 1952 consolidation — which, as discussed under s. 31(2), carried the 1910 Act's definitions forward — is addressed below.

5. **Section 31(2):** In the event of inconsistency between a consolidated statute and the original statute, the original statute prevails. This is not a novel rule but a codification of the settled principle carried in the Interpretation Act in force throughout the operative period — R.S.C. 1886 and R.S.C. 1906, c. 1 — that a revised statute is a continuation of the original law, not a new enactment, and that every Act be construed remedially to attain its object. These were the interpretive provisions governing the Chinese Immigration Act, 1923, and its registration regime. The 1946 Act originally read "at the time of the coming into force of this Act" — not "on the 1st day of January 1947," an error introduced by the 1952 consolidation. Because the consolidation continued the prior law rather than enacting afresh, the alteration was a transcription error, not a legislative amendment, and the original wording governs.
6. **Registration was administrative, not constitutive.** The certificate issued to Douglas Jung (born Jung Hin Weh), a Canadian-born infant registered under the Chinese Immigration Act, 1923 (C.I. 45, No. 27,000), bore the disclaimer: "*This certificate does not establish legal status in Canada*." The instrument itself thereby conceded that registration was a record-keeping exercise, not a source of status. Read against the Immigration Act's scheme, as s. 32(1) requires, the certificate tracked an existing population; it neither granted nor withheld citizenship. The absence of a certificate thus cannot be read as the absence of status — the instrument itself disclaims that inference. (See Part XIV for the full treatment.)
7. **Vested rights survive repeal (s. 43).** Section 43 of the Interpretation Act codifies the protection of vested rights on repeal. Where an enactment is repealed, the repeal does not affect "any right, privilege, obligation or liability acquired, accrued, accruing or incurred under the enactment so repealed." When the 1946 Act repealed the naturalization provisions of prior law, it could not legally vaporize the statuses already acquired under the Immigration Act, 1910 and the Canadian Nationals Act, 1921. Millions of Canadians had acquired citizenship under those statutes — by birth, by naturalization, by domicile. The 1946 Act could reorganize the vocabulary of status; it could not erase the vested rights of those who already held it. The repeal did not destroy what the prior law had conferred.

E. Presumption Against Retrospectivity Does Not Apply to Status

As Driedger explains in "Statute Definition" (1978) 56 Can. B. Rev. 264, drawing on *The Queen v. The Inhabitants of St. Mary, Whitechapel* (1848), 116 E.R. 811, the presumption against retrospective application does not apply to status.

Status is declaratory. The 1950 amendment's retrospective unification of "British subject" and "Commonwealth citizen" reaches backward to affirm pre-existing status without offending the presumption.

In *Benner v. Canada (Secretary of State),* 1997 CanLII 376 (SCC) at para 54, Justice Iacobucci stated:

> "Immutable characteristics arising at birth are generally more likely to be correctly classified as a 'status' than are characteristics resulting from a choice to take some action."

F. Incorporation by Reference

In *Mainwaring v. Mainwaring*, [1942] 2 D.L.R. 377 (B.C.C.A.), at p. 380:

> "Legislation *by reference*... has been consistently construed not to be ambulatory in its effect, but to incorporate the extrinsic law as at the date of the Act that is being construed, and to be unaffected by subsequent change of the law incorporated... The effect of such legislation is as though the extrinsic law referred to was written right into the Act."

The 1921 Canadian Nationals Act did not invent a new status; it incorporated the definition of "Canadian citizen" already in force under the 1910 Immigration Act, adopting it *by reference*. Charles Doherty, Minister of Justice and Attorney General — the minister with carriage of both statutes — explained the mechanism to the House on March 10, 1921 (House of Commons Debates, 13th Parliament, 5th Session, March 10, 1921, Vol. I, p. 771 (Doherty)):"We have, however, taken everybody who is a Canadian citizen under that Act and recognized him or her as a Canadian national." The Immigration Act, he stressed, stood "absolutely untouched" and, as regards immigration, would "continue absolutely to govern." His operative verb is the whole argument: the new Act did not create Canadian citizens; it recognized those whom the 1910 Act already defined. The minister who drafted the 1921 Act described its effect as recognition of an existing class — not creation of a new one — twenty-six years before the supposed genesis.

Doherty further explained that the 1921 Act adopted the 1910 definition "as heretofore amended" — frozen at the date of adoption, so that "it is not going to follow that because somebody amends the Immigration Act in the future, that that amendment will affect this Act." The minister's own words confirm the static incorporation: the definition was fixed in 1921 and remained operative until the 1946 Act. He also explained why the 1921 Act went beyond the 1910 definition to extend Canadian nationality to the wives of Canadian citizens — a class the Immigration Act had left ambiguous. The Act was not creating a status from nothing; it was taking the 1910 definition as its base and expanding it to cover a class the earlier statute had imperfectly addressed. That is the language of codification and amendment, not genesis.

The doctrine is well settled. Driedger, in Construction of Statutes, distinguishes between legislation by reference that is ambulatory (following later amendments to the referenced statute) and legislation by incorporation that is static (frozen as at the date of adoption). The 1921 Act is a classic case of the latter: it adopted the 1910 definition as its own, unaffected by subsequent changes to the Immigration Act. The definition of "Canadian citizen" was therefore legally fixed and operative in 1921 and remained so until the 1946 Act. A definition cannot be incorporated into law unless the status it defines already exists. The government's own 1947 explanation in the Canadian Bar Review — written by the Canadian Citizenship Branch of the Department of the

Secretary of State — confirms this: the 1921 Act "accepted as the basis of Canadian nationality for the act the definition of 'Canadian citizen' as given in the Immigration Act."

The 1929 debate confirms the same chain in Parliament: Bissett recited the 1921 Act's definition of "Canadian national" — "*any British subject who is a Canadian citizen within the meaning of the Immigration Act*" — and then recited the Immigration Act's definition of "Canadian citizen." Both the Leader of the Opposition and the Secretary of State confirmed the operation of the definition. The incorporation was not a scholarly inference; it was the law as its own contemporaries understood it.

PART XIII — THE CIVIL LAW ARGUMENT (THE QUEBEC TRADITION)

Canada is a bijural country. Quebec operates under the civilian tradition; the rest of Canada under the common law. The argument for pre-1947 citizenship does not depend on the common law alone. It holds with equal or greater force under the principles of the civil law.

1. **Citizenship is an attribute of juridical personality.** In the civilian tradition, a person's fundamental status — who they are in relation to the political community — is fixed at birth as an incident of juridical personality. It is not a privilege granted by the state. The Civil Code of Quebec (art. 1) affirms that every human being possesses juridical personality and enjoys civil rights. The 1946 Act did not grant this status; it recognized a status that had existed as an incident of the person's being within the Canadian polity since Confederation.
2. **Acquired rights cannot be retroactively destroyed.** The civil law fiercely protects acquired rights (*droits acquis*). Once a person has acquired a right or status by birth, a subsequent law cannot retroactively strip it away. Under the 1910 Immigration Act, a person born in Canada was expressly a "Canadian citizen." That was an acquired right. The 1946 Act purported to consolidate the law — but a consolidating statute cannot retroactively destroy a status that existed at the moment of birth. To claim the 1946 Act created citizenship is to argue that the state can retroactively void a status acquired at birth — a concept antithetical to civilian principles of legal security.
3. **Fundamental status is of public order.** In civil law, rights touching the essence of the person are of public order (*ordre public*). They cannot be waived, alienated, or lost by the passage of time. Citizenship is the ultimate public-order status. The state cannot invoke prescription — the lapse of time — to argue that the war dead "lost" a status they held. The status is imprescriptible.
4. **The 1946 Act is declaratory, not constitutive.** The civil law draws a sharp distinction between a law that creates a right (constitutive) and a law that recognizes a pre-existing right (declaratory). The 1946 Act transferred pre-existing "Canadian nationals" (defined in 1921) into the new category of "Canadian citizens." This transfer is the hallmark of a declaratory act — it takes a pre-existing status and gives it a new name. A declaratory act relates back to the origin of the right. Therefore, the citizen status of a person born in 1910 relates back to their birth, not to 1947.

5. **Deduction from the principle of sovereignty.** Unlike the common law's inductive, case-by-case approach, civilian reasoning begins with general principles and deduces specific conclusions. The general principle: a sovereign state necessarily possesses citizens. Canada acquired sovereignty between 1919 and 1931 (*Offshore Mineral Rights*). From that general principle, the specific conclusion follows: a sovereign Canada had citizens. The "concept" of citizenship is not found in a statute, but it is necessarily implied by the foundational principle of sovereignty.

Conclusion in civil law terms. The civilian tradition does not ask, "which statute created this concept?" It asks, "what is the fundamental status of the person, and does the state have the power to retroactively destroy it?" The answer is unequivocal: the status of a person as a member of the sovereign Canadian community was acquired at birth, is protected by the principles of acquired rights and public order, and the 1946 Act — being declaratory — relates that status back to its origin. The war dead were citizens. The 1947 narrative violates the most basic civilian principles of legal security and the inviolability of personal status.

6. **A room with no exit.** Should the government argue that the civil law governs only private law in Quebec and has no bearing on federal citizenship, it would be making three concessions at once. First, it would repudiate the *Federal Law-Civil Law Harmonization Act* (S.C. 2001, c. 4), which obliges the federal government to respect both legal traditions in the interpretation of federal legislation. Second, it would fracture the uniformity of citizenship — implying that a Quebecer's understanding of their own status is incomplete or invalid, creating a two-tier citizenship: one for the common law provinces, one for Quebec. Third, it would concede that the civilian tradition — which protects acquired rights and public order — has no voice in defining the most fundamental public status a person holds. The government cannot have it both ways: either the civil law informs the status of Canadian citizenship, or citizenship is not uniform across Canada. Dismiss Quebec's civil law from citizenship, and you declare Quebec itself peripheral to Canada — a line that splits the country, and an admission no government can afford.

PART XIII-A — THE NEWFOUNDLAND TRANSITIONAL DILEMMA: A STRUCTURAL AND BIJURAL CONUNDRUM

Introduction: The Terms of Union and the Problem of Transition

When Newfoundland entered Confederation on April 1, 1949, the Terms of Union promised the people of the newest province the rights of Canadian citizenship. The mechanism chosen to deliver that promise was s. 44A(4) of the Statute Law Amendment (Newfoundland) Act, 1949, which deemed a person domiciled in Newfoundland to have been a Canadian citizen from the date the domicile was acquired. The statute did not simply grant citizenship going forward; it reached backward, attaching the status to a moment years — sometimes decades — before the Union.

That backward reach is the hinge of the Newfoundland dilemma. If the Crown's central thesis is correct — if Canadian citizenship was a "creature of statute," called into existence on January 1, 1947, by the Canadian Citizenship Act (S.C. 1946, c. 15), and empty of meaning before that date

— then the 1949 Act performed an impossibility. It deemed Newfoundlanders to have possessed, before 1947, a status that the Crown insists did not exist before 1947. A statute cannot deem a person into a nullity. A deeming provision that purports to backdate a status necessarily concedes that the status was real enough to be backdated.

The dilemma is not abstract. It played out in the lives of families whose movements crossed the boundary of the Union: the migrant who left Newfoundland for Quebec in the 1930s; the child born in Montreal who grew up in St. John's; the family that left for the United States in 1945 and naturalized before the Union; the siblings separated by divorce, by custody, by wedlock. For each, the Crown's 1947 start date produces a different answer — and the answers contradict one another. This Part examines those contradictions and shows that they are not defects in the law of citizenship. They are the logical products of a false premise.

The standard Crown defence relies on a strict, mechanical application of the Newfoundland (Consequential Provisions) Act, 1950 (14 Geo. 6 ch. 5) to assert a rigid, uniform commencement date of April 1, 1949, for all statuses passing through that province. When subjected to the dual pressures of Canadian bijuralism and the Federal Law-Civil Law Harmonization Act, this imperial transitional statute ceases to be an administrative timeline and instead collapses into a profound constitutional quandary. The government's thesis creates a bifurcated legal universe that splits the country along its two legal traditions, generating two distinct, irreconcilable absurdities.

The Paradox of the Westward Migrant

Consider an individual continuously domiciled in Gander from January 1, 1924, who relocates to Quebec on January 1, 1931. This individual accumulated seven full years of uninterrupted Newfoundland residence — two years beyond the statutory minimum that Parliament itself prescribed for "Newfoundland domicile" in s. 44A(4) of the Statute Law Amendment (Newfoundland) Act, 1949. Under the strict text of Section 2 of the 1950 UK Act, this person resides in an administrative limbo because they abandoned their physical Newfoundland domicile eighteen years before the formal Union. Yet the moment they established domicile in Quebec, their personal status (*état civil*) fell to be adjudicated under the civilian tradition — the tradition that governs personal status in Quebec and that the Federal Law-Civil Law Harmonization Act now affirms as a foundational principle of Canadian law. By physically embedding their life as a British subject on Canadian territory in 1931, they met the exact criteria of Section 2(b)(ii) of the Immigration Act, 1910 and the Canadian Nationals Act, 1921. To the civil law, these acts are declaratory, not constitutive; they recognized an existing reality and related its legal effects back to the origin of the status. The civil law establishes that this individual acquired a vested right (*droit acquis*) of public order (*ordre public*) that crystallized on January 1, 1931. The 1950 UK statute must be read not to dissolve a status that had already legally attached to a resident of Quebec for nearly two decades.

The Absurdity of the Eastward Migrant

Invert the scenario: a child is born on Quebec soil on January 1, 1940, and the family relocates to Newfoundland on January 1, 1942. By April 1, 1949, the child has accumulated seven full years of uninterrupted Newfoundland residence — again exceeding the statutory minimum. Under the literal formulas of the 1950 UK Act, because this child was physically present in Newfoundland

on the transition dates, their status is tied strictly to the union timeline of April 1, 1949. The Crown is forced to argue that a physical change of address across the Gulf of St. Lawrence in 1942 "paused," "interrupted," or extinguished a birthright Canadian citizenship that had already vested at birth — a status the Immigration Act, 1910 itself recognized by defining "Canadian citizen" to include the native-born. This proposition is legally intolerable. Under civil-law doctrines of human dignity and juridical personality, a status of public order affixed at birth is imprescriptible and travels with the person. To claim this child's citizenship was paused between 1942 and 1949 is to concede that the executive branch possessed the lawful authority to bar a child born in Montreal from returning to their own country simply because they lived in St. John's. If the child had returned to Montreal in 1945, what would they have been — a Canadian resuming their own status, or a foreigner seeking entry? If mere return restored the status, it was never "nothing" — it was a real, pre-existing status awaiting reactivation, which is precisely the declaratory reading of the 1946 Act. If the Crown instead insists the child would have needed a fresh grant in 1945, then the status was not "paused" — it was extinguished — and the Crown is back to defending the nullity: a status destroyed by a family's move and conjured back only by statute. Either way, the "pause" concession proves too much. The Crown cannot answer without abandoning either the pause metaphor or the creature-of-statute defence.

But if Canadian citizenship existed before 1947 — and the deeming provisions, the Terms of Union, and the wartime record say it did — then the legal consequences follow as a matter of course. The status did not begin on January 1, 1947; it was recognized then. Those who possessed it before the Act possessed it after — not by grace of the statute, but by the persistence of a bond the statute could declare but could not create. The Crown's "creature of statute" theory cannot interrupt a status that predates the statute it purports to govern.

The Collapse of Uniformity

The government's adherence to the literal mechanics of the 1950 Act exposes a fatal structural flaw. If the Crown applies a pure common-law "creature of statute" lens to deny the 1924 Gander migrant, and common-law rules likewise strip the 1940 Quebec-born child, the result fractures the uniformity of Canadian citizenship law. It creates a two-tier system in which a citizen's historical identity is dictated entirely by provincial boundaries. The same bijural principle that animates the Federal Law-Civil Law Harmonization Act rejects this asymmetry. On this reading, the common law establishes that both individuals exercised the enforceable, protective rights of a Canadian citizen, and the civil law permanently crystallizes those rights against retroactive state destruction. The Newfoundland (Consequential Provisions) Act, 1950 can comfortably regulate imperial records in London, but it cannot override Canada's constitutional commitment to bijuralism.

PART XIII-B — THE DEEMING CONTRAST: THE CROWN'S SELF-INFLICTED STATUTORY CORNER

The federal government's core defence relies on a clinical axiom: citizenship is a strict "creature of statute" with no meaning or existence prior to January 1, 1947. Yet the exact text of the Statute Law Amendment (Newfoundland) Act, 1949 — subsequently mirrored in the Canadian Citizenship Act revisions — features a mechanism that decimates this position. Parliament

explicitly decreed that any British subject who held Newfoundland domicile on April 1, 1949 "*shall* be deemed to have become a Canadian citizen on the day he acquired Newfoundland domicile."

The Logical Impossibility of Deeming Nothing

This single word — "deemed" — exposes a fatal structural contradiction in the Crown's narrative. In both legal traditions, a statutory "deeming" provision is a deliberate legal fiction. It commands the law to treat a past fact as true. However, a legal fiction must borrow from a recognized legal reality; it cannot manufacture an impossible status out of thin air. If a person who established domicile in Newfoundland on January 1, 1924, is "deemed" by a 1949 Act to have been a Canadian citizen from that exact 1924 date forward, Parliament has textually backdated their status. If Canadian citizenship had no legal existence or meaning prior to 1947, then for twenty-three years of that individual's deemed life (1924 to 1947), Parliament has deemed them to hold a status that was legally impossible to possess. It is checkmate to the Crown: either the status of Canadian citizenship existed in 1924 to be retroactively occupied, or the 1949 statute is a legally incoherent absurdity that deems a person to be something that did not exist.

The Intention Behind the Fiction

A court need not accept the stark "logical impossibility" framing to reach the same result. The stronger ground is *parliamentary intention*. The 1949 Parliament chose to backdate citizenship to the date Newfoundland domicile was acquired, and to make that status transmissible to dependents. That choice only makes sense if Parliament understood the incidents of Canadian citizenship — immunity from deportation, transmission to children, the right of permanent belonging — as already attaching to that domicile. Parliament was not creating a status *ex nihilo*; it was recognizing that the people of Newfoundland had long exercised the practical realities of citizenship and directing that the new statutory regime relate that reality back to its origins.

The Terms of Union Speak First

The Terms of Union between Canada and Newfoundland promised that "suitable provision will be made for the extension of the Canadian citizenship laws to the Province of Newfoundland." The language presupposes that those laws already existed, that they belonged to Canada, and that they could be extended to a new province. If Canadian citizenship was an empty concept before 1947, what exactly was being extended? Both propositions cannot be true; the record forces a choice: either the citizenship laws existed and had substance to extend, or the Terms of Union promised the extension of a nullity.

The Transmission Contradiction

This statutory corner deepens when the Newfoundland Consequential Provisions Act is applied. The UK text was passed specifically to harmonize imperial law with the fact that these individuals were no longer potentially citizens of a separate Newfoundland Dominion, but were instead absorbed into Canada. Under Section 2(1) of the 1950 UK Act, they are retroactively realigned within the British Nationality framework. When read together with Canada's own domicile-backdating clause, the state asserts that this person's Canadian status was legally active

in 1924. More importantly, because that status was active, it was transmissible to their dependents. You cannot transmit a status you do not possess. If the individual held an active, transmissible status in 1924 that carried the ultimate right of permanent belonging, then Canadian citizenship existed — with fully enforceable legal rights — decades before 1947.

The Easier Concession

The government's current stance requires judges to perform impossible intellectual gymnastics: to pretend that a person can be "deemed" a citizen in 1924, protected from deportation by the 1910 Act, and labelled "Canadian" on military attestation papers, while simultaneously maintaining that the status was an empty, meaningless word. To escape this self-inflicted corner, it is vastly easier for the government to simply concede the historical truth: the 1946 Act did not create Canadian citizenship from nothing; it merely codified an existing, rights-bearing national status that had already been woven into the constitutional fabric of the country.

PART XIII-C — THE BILL C-3 NEWFOUNDLAND EXPATRIATE PARADOX

The introduction of Bill C-3 (assented to November 20, 2025, as Chapter 5 of the Statutes of Canada 2025) to eliminate the first-generation limit on citizenship by descent exposes a massive, logical black hole when applied to historical territorial migration. Consider a family rooted in Newfoundland since the 1600s that relocated to the United States in 1945 and took out U.S. citizenship in 1946. Because they were naturalized Americans prior to January 1, 1947, and prior to the 1949 Union, the strict, literal mechanics of Bill C-3 fail to capture their modern descendants. Under the Crown's orthodox narrative, this multi-generational line is discarded as having never possessed Canadian status.

The Exclusion Survives Even C-3's Generosity

Parliament designed C-3 to be maximally retroactive. New paragraph 3(1)(h) confers citizenship on persons who were granted citizenship on or after January 1, 1947 but before April 17, 2009, and who would have been citizens under paragraph (g) but for that grant. New paragraph 3(1)(i) restores citizenship to persons who had been citizens other than by way of grant, ceased to be citizens for reasons other than the enumerated renunciations, and were subsequently granted citizenship. New subsections 3(6.2) and 3(6.5) deem such persons never to have been citizens by way of grant. New subsection 3(7)(h) deems a person under paragraph (1)(b) to have been a citizen from the time of birth. New subsection 3(1.5) even reaches past a deceased parent to save a child's claim.

Yet none of these mechanisms reach the Newfoundland family. They were never granted citizenship under the 1946 Act or its successors, so paragraph (h) is unavailable. They did not cease to be citizens and later regain status, so paragraph (i) is unavailable. The April 1, 1949 date preserved in new paragraph 3(2.3)(a) marks a distinct transition for Newfoundland, but it operates only to exclude — it does not restore anyone who fell away before the Union. The family's descendants are told that their ancestors, rooted on the continent's eastern edge since the seventeenth century, simply never possessed what the state now distributes retroactively to others.

Parliament's Own Deeming Mechanisms Presuppose Pre-1947 Status

The paradox is not merely that the family is excluded. It is that the very machinery Parliament deployed to be generous presupposes the status existed before 1947. The deeming provisions in C-3 are the same species of legal fiction as the deeming provision in section 44A(4) of the 1949 Act. Parliament cannot consistently say, on the one hand, that a person is "deemed" to have been a citizen from the date they acquired Newfoundland domicile in 1924, and on the other hand, that no such status existed in 1924 to be deemed. The 2025 Parliament inherited and extended a statutory architecture that has, since 1949, repeatedly purported to backdate citizenship to dates before January 1, 1947. And yet IRCC refuses to this day to date a citizenship certificate before 1947. The bureaucracy will not certify what its own statute contemplates. The reason is evident: a certificate dated 1924 would be a written admission that the status existed in 1924 — that Canadian citizenship was real before the 1947 Act, and that the Crown's entire edifice rests on a denial. The statute's deeming provisions only function — only make sense — if the status they backdate had real legal content all along. The administrative refusal to honour that backdating does not refute the argument. It confirms it.

The Inductive Proof From State Action

To maintain that this family never held Canadian citizenship before 1947, the government must ignore its own historical actions. If pre-1947 Canadian status was an empty concept, the King government would not have found it legally necessary in 1945 to pass Privy Council Order P.C. 7356 to actively revoke the "Canadian nationality" of Japanese Canadians before expulsion. The state does not bother to strip a status it believes does not exist. The existence of a revocation power — exercised, documented, and defended — is the strongest possible evidence that the status being revoked was real. If citizenship existed forcefully enough for the state to actively strip it from its targets in 1945, it existed inherently for the families who built the territory.

A Question Only the Courts Can Answer

Whether Bill C-3's exclusion of such families can withstand constitutional scrutiny — whether the arbitrary 1947 and 1949 paperwork barriers violate the equality guarantees of the Charter, or whether the pre-1947 status argument compels inclusion — is a question this memorandum does not purport to answer definitively. But the question itself is worth placing squarely before the courts. The Crown's "creature of statute" defence, confronted with its own deeming provisions, its own Terms of Union, and its own wartime revocation orders, now faces a choice: concede that Canadian citizenship existed before 1947, or defend a statutory architecture that deems citizens into a status it insists did not exist. The Crown cannot occupy both positions at once. The Newfoundland transition is where that contradiction becomes visible, and it is where the Crown's defence should collapse.

Truth remains the path of least resistance — morally, financially, and legally. Conceding that citizenship existed before 1947 costs the Crown a footnote; resisting costs it decades of litigation, compensation, and administrative chaos. The fiction demands Canadians accept their grandparents' status was a nullity. The Crown can choose wisdom or waste. It cannot choose both.

PART XIII-D — DIVORCE, MINORS, AND THE FRACTURING OF FAMILY STATUS

The Crown's rigid framework reaches its cruellest and most incoherent expression when a parental divorce fractures a migrant family. The "creature of statute" theory, read literally, makes status turn on physical geography and a now-abandoned rule of dependent domicile. Two scenarios expose the contradiction.

Scenario One: Children Born in Quebec

Assume two children are born, in wedlock and in Montreal[12] — Child A and Child B — whose family relocates to St. John's in 1935. In 1940 the parents divorce. A Quebec court awards physical custody of Child A to the mother, who returns to Montreal; the father retains Child B in St. John's.

[12] Under the common-law doctrine of dependent domicile, a legitimate minor child's domicile followed the father's, regardless of physical custody. The state's own records (CP 14, 07-1986) separately document the "responsible parent" mechanism by which a child's status was derived from, and could be lost through, the father. On those rules, both children's legal domicile remained pinned to the father in Newfoundland, though Child A lived in Montreal.

The Crown's answer, however, is simpler and more destructive to its own narrative: Child A was a Canadian citizen on January 1, 1947 by birth in Canada, because the 1946 Act conferred citizenship on every person born in Canada who had not become an alien. Domicile was irrelevant to that ground. So, Child A was not an "undocumented alien on native soil." Child A was a citizen — but only from January 1, 1947, and only because of a statute the Crown insists created the status.

That answer produces its own absurdity. Child B, born in the same city, to the same parents, in the same hospital, was physically in St. John's on the commencement date. On the Crown's reading, Child B waited until April 1, 1949, and was then "deemed" a citizen back to 1935 under s. 44A(4) of the Statute Law Amendment (Newfoundland) Act, 1949. Two siblings, one divorce, two commencement dates. The only difference is which parent the decree placed them with.

The domicile contradiction remains. If the father's domicile mattered for Child B's exclusion, it mattered equally for Child A — yet the Crown ignores it for Child A and invokes geography for Child B. Legally, the Crown has no principled basis for applying a rule to exclude one child and discarding it to include the next.

Scenario Two: Children Born in Newfoundland

Now invert the facts. Assume two legitimate children born in St. John's — Child C and Child D — whose family moves to Montreal in 1935. In 1940 the parents divorce. The father remains in Montreal with Child D; the mother returns to St. John's with Child C.

Both children's domicile of dependence follows the father. On January 1, 1947, both children are therefore domiciled in Canada through the father. Under the pre-1947 law — and on the Crown's own statutory architecture — a British subject with Canadian domicile was a Canadian citizen. Child D, physically in Montreal, becomes a citizen on January 1, 1947.

Child C, physically in St. John's but legally domiciled through the father in Montreal, stands in exactly the same position. Yet the Crown's territorial reading of the Newfoundland (Consequential Provisions) Act, 1950 defers Child C's status to April 1, 1949. Same father. Same domicile. Different commencement dates, produced solely by physical geography.

The Crown is trapped. It must either declare that a child legally domiciled in Canada is an alien because of physical location or admit that pre-1947 Canadian status operated independently of the geographic transition timelines. Neither answer preserves the "creature of statute" narrative.

The Civilian Resolution

The Federal Law-Civil Law Harmonization Act (S.C. 2001, c. 4) is an interpretive statute; it did not govern the 1940s. But the same bijural principle that animates it — that federal law must respect both legal traditions — rejects these anomalies. In the civil law, personal status (*état civil*) is an inherent attribute of juridical personality and a matter of public order (*ordre public*). It is imprescriptible. It cannot be split, paused, or nullified by a parental divorce or by common-law fictions of a "responsible parent."

Under a civilian lens, the 1946 Act is declaratory, not constitutive. Children born on Quebec soil were citizens from the day of their birth. Children born in Newfoundland who acquired Canadian domicile held a status that could not be suspended by geography. No administrative address barrier, and no marital breakdown, can weaponize a common-law fiction to strip a child of their country.

PART XIII-E — THE WEDLOCK DIVIDE: ONE HOUSEHOLD, TWO CITIZENSHIP TIMELINES

The Crown's framework does not merely fracture along geography and divorce. It fractures along the marital status of a child's parents at birth. Consider a household in Montreal on January 1, 1947.

On that date, two children sleep in the same room of the same house in Montreal: Emily, born in 1938, and Thomas, born in 1941. They share a mother, a home, a country, and a father. On the Crown's reading, they do not share a citizenship.

Emily was born in Montreal, out of wedlock. Under the doctrine of dependent domicile — the "responsible parent" mechanism the state itself documented in CP 14, 07-1986 — an illegitimate child's status followed the mother. Her mother was a Canadian national, domiciled in Quebec. Emily was born in Canada and has not become an alien. On January 1, 1947, she is a Canadian citizen.

Thomas was born in St. John's, in wedlock, after their mother married Emily’s father, a British subject domiciled in Newfoundland. A legitimate child's status followed the father. The father's domicile was Newfoundland — outside Canada until 1949. On January 1, 1947, Thomas is not a citizen. He waits for the Union, when the transition provisions deem him one, reaching back to the date his father acquired Newfoundland domicile.

Same mother. Same household. Same street. Same father. The only differences are the circumstances of their birth — whether their parents were married — and the address of the man their mother married.

This is not coherence; it is a hall of mirrors. The Crown's own machinery — dependent domicile, responsible parent, deeming provisions, transition dates — produces results no legislator could

have intended and no family could have predicted. That is precisely the point. If Canadian citizenship were truly a creature of statute born on January 1, 1947, Parliament could simply have declared who was a citizen. Instead, the 1949 Act had to reach back to domicile acquired years earlier — because the status it was recognizing was already real.

Fictions may organize a legal system; they cannot be allowed to manufacture — or withhold — a country.

Every anomaly in the Crown's framework — the citizen whose status "paused" at a provincial boundary, the siblings divided by wedlock, the child whose citizenship turned on which parent held custody — is an artefact of the 1947 start date. Admit what the record already compels: Canadian citizenship existed before 1947. On that admission, each of these scenarios dissolves. They were never defects in the law of citizenship. They were the unavoidable absurdities of a false premise.

PART XIV — THE CHINESE CANADIANS

A. The "Stateless Registered Alien" Fiction

The Chinese Exclusion Act (1923) required, under penalty of law, all Chinese Canadians to register. Douglas Jung — born Jung Hin Weh in Victoria, BC in 1924, later Canada's first Chinese Member of Parliament and delegate to the United Nations — was registered that June under the Chinese Immigration Act, 1923, Certificate C.I. 45, No. 27000. His registration card, issued by the Department of Immigration and Colonization, stated: "*This certificate does not establish legal status in Canada."*

Canadian-born Chinese were told by the government that they were nothing more than "stateless registered aliens." They were not born in China and had no claim to Chinese citizenship, and Canada said they were not citizens of Canada. Yet on February 15, 1929, in the House of Commons, the law was stated otherwise. Mr. E.D.R. Bissett declared:

> "It is thus quite clear that as the result of this legislation everyone born in Canada is entitled, under the laws of our country, to call himself a Canadian, when asked as to his nationality. This applies to all persons of all races, even to Chinese, negroes *(sic)* and Indians born in this country."[13]

[13] House of Commons Debates, 16th Parl, 3rd Sess, Vol 1 (15 February 1929) at 176 (Edgar D.R. Bissett).

Bissett's 1929 address provides the definitive exposure of the state's timeline. In the first half of his speech, he built an undeniable legal foundation: he read the 1910 Immigration Act and the 1921 Canadian Nationals Act directly into the record to prove that *de jure* Canadian citizenship and nationality already existed — with legal rights — seamlessly conferring the right to call oneself 'Canadian' to anyone born on Canadian soil. Yet in the second half of his resolution, he exposed a dark motivation behind the state's subsequent amnesia. Because existing law was universally inclusive — validating the status of Chinese, negro *(sic),* and Indigenous Canadians — Bissett sought to engineer a new, exclusionary tier of belonging: the 'Canadian race.' His legislative goal was to create a racialized gatekeeping mechanism that restricted full national identity to multi-generational white families. The government's modern insistence on a strict

1947 start date relies on this very strategy — pretending the inclusive legal statuses of 1910 and 1921 never existed, thereby legitimizing the historical erasure of non-white citizens. He therefore admitted, in both parts of his speech, the existence of Canadian citizenship and its attendant legal rights.

Hence, the executive's designation of Canadian-born Chinese as 'stateless registered aliens' was hollow from the outset. It stood directly contrary to the law as Parliament had already codified it in the 1921 Act, and contrary to the law as the Supreme Court would definitively declare it in *Shin Shim* (1938).

B. The 1923 Act Left Citizenship Law Untouched: Consolidation, Interpretation, and the Purpose of the Exclusion Act

The Chinese Immigration Act, 1923 — the "Exclusion Act" — was an instrument of immigration control. It prescribed who might enter and remain in Canada, and which classes were excluded. Its text said nothing about the civil status of Canadian-born Chinese persons, and nothing about citizenship or nationality.

That silence was legally significant under the interpretive framework long established by the time the Act was passed. Since the first consolidations of the young Dominion, the federal Interpretation Act — Chapter 1 of the *Revised Statutes of Canada* in both the 1886 and 1906 revisions — had codified the rules governing the relationship between statutes. Three of those rules bear directly on the Exclusion Act:

- **Consolidation does not change the law**. A revised statute is a continuation of the original law, not a new enactment. The consolidation process was legally defined as a "revision, classification, and consolidation" of existing statutes, and a revised statute was not to be treated as a brand-new law.
- **No implied repeal**. A later enactment does not displace an existing enactment, or the existing law, further than is expressly declared or necessarily implied. References in outside contracts, prior judgments, and remaining statutes to a repealed-and-reconsolidated Act were automatically deemed to point to the consolidated version.
- **Statutes are remedial.** Every federal statute must be deemed remedial, directing judges away from strict literal readings toward the statute's actual purpose and intent.

By 1923 these were settled doctrines, having governed every federal consolidation for nearly four decades. The Exclusion Act neither declared nor implied any alteration to the settled position that a person born in Canada was a natural-born British subject and Canadian national. Nor did its silence permit a judge to read into it an intent to strip Canadian-born persons of their status — the remedial rule required the Act to be read according to its evident purpose, which was the control of immigration, not the extinguishment of citizenship.

The Supreme Court of Canada confirmed this fifteen years later in *Shin Shim v. The King* (1938). The Court held that a Canadian-born person of Chinese descent was a citizen by birth and thus outside the reach of the head-tax and exclusion regime. That result followed from the common law of birthright nationality, reinforced by the ordinary operation of the interpretive rules described above: the 1923 Act had not displaced the existing law of citizenship, and read remedially, its purpose did not extend to it.

The Exclusion Act governed immigration. It did not govern — and could not touch — the status of Canadians born in Canada.

C. *Shin Shim v. The King*, [1938] SCR 378

The Supreme Court of Canada held that a woman born in Victoria, BC, of Chinese ethnicity, was a Canadian citizen under the 1910 Immigration Act by virtue of birth in Canada. The Court held:

> "The appellant, a Chinese woman, arrived in Vancouver on the 9th of September 1936, and claimed she was a Canadian citizen, having been born in the city of Victoria and being the wife of a Chinaman then residing in Vancouver."

The trial judge found "that the appellant was in fact a Canadian citizen." The Supreme Court restored the order discharging her from custody, holding that "the clear intendment of s. 37 of the Chinese Immigration Act is... that the prohibition against the courts has no application to any case where the applicant is a Canadian citizen."

If citizenship did not exist in 1938, how could the Supreme Court make that ruling? Answer: They couldn't.

D. Douglas Jung

Born in Victoria in 1924, Douglas Jung was in exactly Shin Shim's position — a Canadian citizen by birth under the 1910 Act. Yet his C.I. 45 registration certificate, issued June 26, 1924 under Section 18 of the Chinese Immigration Act, 1923, bore the notation: "*This certificate does not establish legal status in Canada*." The disclaimer conceded precisely the point: registration was administrative, not constitutive of status. The government's own form admitted it conferred nothing, even as the highest court in the land had held that Jung's status — by birth — carried real rights, including exemption from the head tax and access to the courts.

E. The War Dead

Fred Lee, born in Kamloops, BC, of Chinese descent, died at the Battle of Hill 70 in 1917. To this day, he is recognized by the government as having been nothing more than a "stateless registered alien."

In a book published by the Canadian Department of Defence in 2005, *Fighting for Canada*, the government itself said of the Asian WWI soldiers: Chinese and Japanese Canadians in Military Service were "devoted Canadian citizens."

Prime Minister Justin Trudeau, at the 100th anniversary of Vimy Ridge, said: "By going so far as to sacrifice their lives, these ordinary and extraordinary men of the British dominion fought for the first time as citizens of one and the same country."

F. Operation Oblivion and Force 136

Douglas Sam was born in Vancouver. After several attempts, he convinced the RCAF to let him enlist in WWII. His plane was shot down over France; he was picked up by the French Resistance and gathered intelligence behind enemy lines. When the European theatre ended, Mackenzie King called on young Chinese Canadians for Operation Oblivion — a top-secret, all-

volunteer suicide mission behind Japanese-held territory in Malaya, Burma, and India. The men were given cyanide capsules to be taken if captured.

Despite being treated so abysmally by their own government — told they had no legal rights, told they were 'stateless registered aliens' — they still volunteered for a suicide mission. They did it because they believed in Canada. It was their country too. They hoped for "One war: Two victories" — victory over fascism abroad, and victory over racism at home.[14]

The Chinese Canadian veterans returned and changed their country forever. But first, they had to secure the right to vote — and before that, they needed to be recognized as citizens. The recognition was not new. The permission was.

[14] "One war: Two victories" — Chinese Canadian veterans' slogan during the Second World War. Chinese Canadian Military Museum (Vancouver).

G. The Franchise Contradiction

The veterans' demand for the franchise exposed the contradiction the government could not escape. If Chinese Canadians were not citizens, why did the Immigration Act define them as "Canadian citizen"? If they were citizens, why were they barred from the vote?

The answer the government gave was a technicality that concealed a choice. The federal franchise was derivative: it followed the provincial electoral lists. A province that excluded a race from its voters excluded that race from the federal roll as well — without Ottawa having to legislate the exclusion itself. British Columbia had done so by statute since 1871.[15] Hence, the federal government could maintain plausible deniability: "We did not exclude them; the province did." But a government that defines a class as "Canadian citizen" under its own statute, shields them from deportation under section 41, transmits their status to their wives and children, and then permits their exclusion from the ballot through a provincial proxy — that government has made a choice and dressed it as a technicality.

The exclusion was not passive. The 1875 amendment — documented in the timeline — went further: it ordered all Chinese and Indian names already on the register struck, and penalized any official who re-entered them.[16] The province did not merely decline to enfranchise; it actively erased those already registered and punished those who would restore them.

The franchise is the rights test. It is the most fundamental legal right attached to the status of citizenship. When the government grants the franchise to some citizens while denying it to others on the sole ground of race, it cannot then claim that citizenship "existed but carried no rights." Selective attachment is still attachment. A right extended to some holders of a status and withheld from others is a right that the state recognizes in the status itself — it simply chooses who gets to enjoy it.

There is no retreat past this point. If the government concedes that the word "citizen" existed before 1947 but insists the status was hollow — a label without content — then it must explain what content it attached to the word when it suited. It attached the right to remain in Canada (section 41). It attached the right to transmit nationality to a spouse (the 1921 Act). It attached the right to serve in the armed forces as a Canadian. It attached the right to be counted in the census as a Canadian citizen. And when the soldier came home, it attached the right to vote — but only for those citizens whose race the province had not excluded.

A status that carries the franchise for some holders and not others is not an empty concept. It is a real legal status applied selectively. And a government that applies a real legal status selectively — granting its benefits to some and denying them to others on grounds of race — cannot then plead that the status meant nothing. It meant everything. It simply did not mean everything to everyone.

The franchise was restored in stages: British Columbia in April 1947,[17] the federal government in June 1948.[18] But the restoration did not create a right that had never existed. It removed a barrier that had been imposed on citizens. The veterans did not acquire citizenship by winning the vote. They demanded the vote because they already held the status that entitled them to it — the status the government had defined, recognized, and enforced against them for decades.

Douglas Jung proved it. The certificate that registered him as an infant disclaimed that it established legal status. Yet he served for Canada in Force 136 (Operation Oblivion). After the war he returned to a province that would not let him vote. In 1957 he became the first Chinese Canadian Member of Parliament.[19] He did not become a citizen by entering the House of Commons. He entered because he was a citizen who had finally been permitted to exercise the rights that status carried.

[15] Qualification and Registration of Voters Act, 1871, S.B.C. 1872, c. 39, s. 13 (disqualifying "Chinese or Indians" from the provincial franchise). See Government of British Columbia, "Discriminatory Legislation in British Columbia 1872–1948," gov.bc.ca.

[16] An Act relating to an Act to make better provisions for the Qualifications and Registration of Voters, 1875, S.B.C. 1875, c. 2 (ordering removal of Chinese and Indian names from the voters' register and imposing fines on officials who re-entered them). See ibid.

[17] Provincial Elections Act Amendment Act, 1947, S.B.C., c.28.

[18] Dominion Elections Act amendment, 1948, S.C., c. 46

[19] Douglas Jung (1924–2002). Born in Vancouver, British Columbia. Registered as an infant under the Chinese Immigration Act, 1923 (certificate C.I. 45, No. 27,000). Enlisted in the Canadian Army during the Second World War; served as a covert agent in Force 136 (Operation Oblivion) under the British Special Operations Executive (SOE) and Special Operations Australia. Elected as the first Chinese Canadian Member of Parliament, 1957. Progressive Conservative, Vancouver Centre.

PART XV — THE JAPANESE CANADIANS

Stripping of Citizenship and Deportation

The machinery of citizenship revocation has been in operation since Confederation. The Naturalization Act, 1868 provided that a minor ceased to be a British subject when the responsible parent did — so that Canadian women who married non-British-subject men lost their own status and, derivatively, that of their children. The state's own documentation (CP 14, 07-1986) traces this scheme through the Imperial Act of 1915, the amendments of 1932, and into the Citizenship Act itself. Whether through CP 14 or other avenues, the government has targeted and revoked the status of Indigenous peoples, our war dead, the strikers of Winnipeg, the Member of Parliament Fred Rose, and even Senator Roméo Dallaire.

In 1945 it was turned on Japanese Canadians.

The grant was recent and the record is public. In February 1923, the Vancouver naturalization court — on instructions from the federal Secretary of State — admitted Japanese applicants to Canadian citizenship. Judge Cayley, having sought instructions from Ottawa before committing to any policy in the matter, read from a letter signed by the Secretary of State making clear that the naturalization judge had no discretion to discriminate: the qualifications for Japanese applicants were the same as for any other nationality, and the judge's duty was to determine whether the applicant was a "fit and proper person" under section 23 of the Naturalization Act. Three Japanese applicants, properly sponsored and with credentials in order, were presented for naturalization and endorsed by the court. *The Province* reported the ruling under the headline "Japanese Are Admitted To Canadian Citizenship" (February 5, 1923).[20] The state's own machinery granted Canadian citizenship to Japanese immigrants twenty-four years before the supposed genesis — and twenty-two years before P.C. 7356 revoked the status.

Under the War Measures Act, the King government issued three Orders in Council regarding Japanese Canadians. P.C. 7356 — The Revocation of Status — addressed the status of those slated for removal. Its operative provision read:

> "Any person who, being a British subject by naturalization under the Naturalization Act, Chapter 138, R.S.C. 1927, is deported from Canada under the provisions of Order in Council P.C. 7355 of December 15, 1945, shall, as and from the date upon which he leaves Canada in the course of such deportation, cease to be either a British subject or a Canadian national."[21] The machinery of these Orders — and the human cost of their execution — is documented in the investigative record of CBC's The Fifth Estate.[22]

[20] The Province, "Japanese Are Admitted To Canadian Citizenship," Vancouver, British Columbia, February 5, 1923, p. 1

[21] P.C. 7356, December 15, 1945, reprinted in Reference re Validity of Orders in Council in Relation to Persons of Japanese Race, [1946] SCR 248.

[22] Linden MacIntyre, "Throwaway Citizens," The Fifth Estate, CBC-TV, aired October 24, 1995, https://www.youtube.com/watch?v=ggNYkFg6AjA

The Admission Against Interest

In 1945, the government did not simply deport Japanese Canadians. It created a separate, deliberate legal instrument — P.C. 7356 — whose sole function was to render them stateless before expulsion. This was not an act of administrative convenience. Deporting an alien is routine; no elaborate Order in Council is required. But King's government went to the extraordinary trouble of legislating the revocation of citizenship and defended that revocation all the way to the Privy Council.

The question writes itself: How can the state revoke a status that, by its own official narrative, did not legally exist until January 1, 1947?

It cannot. The very existence of P.C. 7356 is an admission against interest. It is the state's own acknowledgment that Canadian citizenship was a real, existing legal status in 1945 — a status so consequential that it had to be actively destroyed before deportation could proceed. One does not pass a law to take away something that was never there.

Still more telling is the reach of P.C. 7355, s. 2(3). The government did not merely revoke the status of naturalized subjects — those who had acquired Canadian nationality by grant. It also asserted the power to deport natural-born British subjects: persons whose status derived from

birth in Canadian territory, not from any act of the state. If citizenship were a privilege conferred by statute in 1947, what status did a natural-born Canadian hold in 1945 that required an Order in Council to extinguish?

The Supreme Court upheld the *Orders in Reference to the Validity of Orders in Council in relation to Persons of Japanese Race*, 1946 CanLII 46 (SCC), [1946] SCR 248, and the Privy Council affirmed. The courts permitted the destruction of the status — demonstrating the catastrophic consequences of the privilege theory. But the government's own actions in 1945 provide the definitive proof that citizenship was a right: the state cannot strip what it insists never existed.

The admission is also preserved in the Prime Minister's own hand. In his private diary entry of January 22, 1947 — three weeks after the supposed genesis of Canadian citizenship — Mackenzie King recorded that his successor, Louis St. Laurent, "fought strongly and bravely for deporting practically all who could be deported including some Canadian citizens on the score that they would increase in population and demands would be made later to have the Japanese in Canada given the same rights as the white population."[23]

The future Prime Minister of Canada argued for the deportation of "some Canadian citizens" — not as a hypothetical class, but as identifiable people. The fight itself predated the Act: the deportation scheme was launched in December 1945, and the category "some Canadian citizens" included natural-born Canadians whose status no Order in Council had ever revoked. St. Laurent wanted them deported anyway. The status was real enough to be targeted — and the racism was naked enough to be recorded by King himself: the objection was that Japanese Canadians would "increase in population" and later demand "the same rights as the white population."

[23] W.L.M. King Diaries, January 22, 1947, Library and Archives Canada, MG 26 J13; as quoted in "Throwaway Citizens," The Fifth Estate, CBC-TV, October 24, 1995, at 27:41.

Eventually, the machinery was also turned on Parliament's own. Fred Rose, MP for Cartier, became a naturalized Canadian in 1926 — derivatively, as a minor, through his father's naturalization certificate. That certificate was a Canadian instrument, issued under Canadian law, recording a distinctly Canadian status twenty-one years before the supposed genesis. And Parliament recognized it: Rose sat in the House of Commons from 1943 until his expulsion in 1947 — the only parliamentarian ever imprisoned for espionage. Yet the state stripped that recognized status in 1957 while he resided in Poland; he never returned to Canada. The state's own conscience intervened. In 1958, Minister of Citizenship and Immigration Ellen Fairclough introduced the "Fred Rose amendment" to the Citizenship Act — designed specifically to ensure such a revocation could never happen again. The machinery that stripped a Member of Parliament was dismantled by the very government that had wielded it. If a parliamentarian is not immune, no one is.

The Warning

The lesson of 1945 is that citizenship can be weaponized. If citizenship is a privilege, it can be taken from anyone — politician, soldier, or schoolteacher. Senator Roméo Dallaire, later a Companion of the Order of Canada, lost his Canadian citizenship at age 24 under the 1947 Act's age-based loss provision — a status he held from birth but was stripped of by operation of law.

Although his father served in the Netherlands during the Second World War — a soldier in the First Canadian Army that liberated Holland — the government's position is that the father was not a citizen when he wore the uniform. Dallaire called the process "absolutely inhuman" and condemned it as "bureaucratic terrorism." This is not history; it is a standing warning. In June 2026, IRCC suspended citizenship and revoked passports — *via email and without due* process — for approximately 100 Canadians, with the support of Citizenship Minister Diab. Until citizenship is recognized as an inherent right, the machinery that stripped Japanese Canadians of their status remains loaded, aimed, and waiting for the next target. No one — not even Parliamentarians — is immune.[24]

[24] The government's own litigation confirms the stakes. In Scott v. Canada (Attorney General), T-418-12 (F.C.), the Respondent's Memorandum of Fact and Law asserted that "The concept of Canadian citizenship and the status of 'Canadian citizen' as they are understood today were introduced only in 1947" and that Mrs. Scott's father — born in Canada and serving in the Canadian military during the Second World War — "was not a citizen in 1945 when Mrs. Scott was born because the former Canadian Citizenship Act had not come into force yet." [Respondent's Memorandum, paras. 4, 24] The same logic, applied to the approximately 45,000 war brides and 22,000 of their children — including Senator Dallaire, born in the Netherlands in June 1946 to a Canadian soldier father — would have denied them all. The age 24 rule that stripped Dallaire of his citizenship survived until April 17, 2009, when Bill C-37 abolished it — sixty-two years after it was enacted, and only after sustained resistance from IRCC. Even then, Dallaire was not covered; it took Bill C-24, five years later, to capture people like Jackie Scott and Roméo Dallaire. And the law reserves one more cruelty for the fallen. Had their soldier fathers died during the war, Jackie and Roméo would today be Canadian citizens — though only back to January 1, 1947. But their fathers, had they died before 1947, would never have been citizens at all, according to the government. The same death that makes the child a citizen denies the father — the paradox of Part I, played out by the litigation. The government's position in Scott is not an abstraction: it is the litigation arm of the 1947 narrative, deployed against the very families the Crown had welcomed as citizens, and whose soldier fathers had fought for Canada.

The legal incongruity is not merely historical — the question remains alive today. Dallaire is from Quebec — a civil law jurisdiction, where status is conceived as inherent rather than granted. The government's theory of citizenship as pure statutory creation is an artifact of the common law tradition — a lens it applied to strip him, indifferent to the civil law conception. Scott is from Ontario — common law. If civil law recognized Dallaire's status from his birth in 1946, while common law denies Scott's until 1947, the government's own theory would divide the country along its two legal traditions: two children of Canadian soldiers, born overseas during the same war, could be treated differently because of the province in which they now live. Province of residence could determine citizenship history. For now, the government applies a single common-law lens to every applicant, regardless of province — the civil law question has yet to be resolved.

PART XVI — THE INDIGENOUS CASE

A. The Enfranchisement Policy

The enfranchisement provisions of 1868–69, the Indian Act of 1876, the Electoral Franchise Act of 1885, and Bill 14 in 1920 all treated "full Canadian citizenship" as a real, attainable status — the endpoint of the civilization policy.

B. Duncan Campbell Scott, 1920

> "Our object is to continue until there is not a single Indian in Canada that has not been absorbed into the body politic and there is no Indian question and no Indian Department — that is the whole object of this Bill."

The proposed amendment granted the superintendent general the power to end "Indianness" by establishing government boards of inquiry to examine the fitness of individual Indians to become citizens. You cannot conduct a fitness examination for a status that does not exist.

C. The 1933 and 1937 Statements

On February 21, 1933, a government official gave a talk on radio station CNRO (Ottawa) in which he reaffirmed the dual principles of "Indian protection and civilization" and stated that the policy of the department was "to advance the Indians until they are ready to take their place on an equal footing with our white neighbours as full Canadian citizens." The same policy themes were repeated to the Ottawa Kiwanis Club on May 14, 1937.

D. The 1927 Arctic Expedition and the Government's Own History

The 1927 Canadian Arctic Expedition (which included Dr. Frederick Banting) treated the Inuit as members of the Canadian political community — British subjects and citizens of Canada.

The government's own commissioned history confirms this. In *The Government of Canada and the Inuit*, 1900–1967, written by Dr. Richard Diubaldo for the Research Branch of Indian and Northern Affairs Canada (1985), the department's historian recorded:

> "By order-in-council, the charge of Inuit affairs was transferred to the commissioner of the Northwest Territories on August 31, 1927. Inuit status, however, was never clarified and the Inuit continued to be viewed, legally, as Canadian citizens pure and simple." (p. 36)

E. The Bouncing of Status

Indigenous peoples were bounced around: first British wards, then British subjects, next recognized as Canadian nationals and Canadian citizens, only to later be disenfranchised, then franchised, then disenfranchised, and then again franchised. The laws came and went entirely with political purpose.

F. The Nicholas Case and Minister Hajdu's 2022 Admission

A Haida man, facing the choice of sending his children to residential schools or giving up his Indian status, chose enfranchisement in 1944 — losing Indian status but gaining citizenship.

In March 2022, Canada's Minister of Indigenous Services put the court challenge on hold, promising corrective legislation. Minister Hajdu admitted that Canadian citizenship existed all the way back to Confederation:

> "Enfranchisement was a process whereby members of First Nations lost eligibility to registration and membership in their home communities. In return, they gained basic entitlements, such as, Canadian citizenship, the right to vote in Canadian elections, the right to hold land in fee simple, and freedom from compulsory residential school attendance for their children."

How could he become a Canadian citizen in 1944 if citizenship did not exist until 1947? Answer: He couldn't.

PART XVII — THE CORRECTION OF THE RECORD

A. Mackenzie King's False Narrative

The claim that Canadian citizenship began on January 1, 1947, originates with Prime Minister Mackenzie King. The historical record demonstrates that this claim was false when made and is false today.

King's own actions refute his own narrative:

- **1908:** As Deputy Minister of Labour, King invoked "the status that a citizen must maintain" and the "existing body of citizens" in an official report to British authorities.
- **1925:** King delivered an address in his hometown of Berlin (Kitchener), Ontario, on "the opportunities and responsibilities implied in being a citizen of Canada" — fifteen years after the phrase was defined in the Immigration Act, 1910, and twenty-two years before the supposed genesis. He recalled the occasion in his January 3, 1947, speech before the Supreme Court of Canada, noting he had "read over what I had said at that time" the night before and confirming "It was the summer of 1925 when I was speaking." The sitting Prime Minister thus employed the statutory phrase "citizen of Canada" as the settled antecedent of the new statute — not as a status the Act had created.
- **1945:** King issued an Order in Council stripping Japanese Canadians of their citizenship — an act that presupposes citizenship existed to be stripped. When challenged, the Supreme Court upheld its legality (*Reference to the Validity of Orders in Council in relation to Persons of Japanese Race*, 1946 CanLII 46 (SCC)). So too did the Privy Council on appeal (*Co-operative Committee on Japanese Canadians v. Attorney-General for Canada,* [1947] A.C. 87): 3,964 Japanese Canadians — including 700 children born in Canada — were made stateless and deported.
- **October 22, 1945:** During the 1st Session of the 20th Parliament, Secretary of State Paul Martin Sr. introduced Bill No. 20 (which became the 1946 Act). In debates, he made the following statement: “It should not be concluded from this that the bill in reality makes any sweeping change or that there has not previously been any such thing as Canadian nationality. Despite what one often hears to the contrary, there has been a Canadian nationality.” HC Deb, 20th Parl, 1st Sess, 22 October 1945.
- **1946:** King welcomed war brides at Pier 21 as "Canada's newest citizens."
- **January 3, 1947:** The Chief Justice affirmed King's existing citizenship.

B. King's Own Words at the Ceremony — January 3, 1947

At the citizenship ceremony itself — the ceremony that the orthodox narrative marks as the birth of Canadian citizenship — King said:

> "Some of us who have received certificates tonight, have enjoyed those rights all our lives."

The Prime Minister, at the very moment the state supposedly created citizenship, stated that he and others had enjoyed the rights of Canadian citizenship all their lives. The certificates were recognition, not creation.

King also confirmed the layered status in the same speech:

> "As Canadians we have a national citizenship, a commonwealth citizenship, and a world citizenship."

And he described citizenship as "part of the very structure of our nation" — not a statutory novelty, but a pre-existing element of the constitutional order.

Nor was the ceremony a grant of a new status. The Chief Justice did not give King citizenship; he *affirmed* King's existing citizenship.

C. The Paradox of Twenty-Three Days — The Government's Own Concession — January 24, 1947

Within weeks of the Act's commencement, the King government repealed P.C. 7356 — the order whose stated purpose was "to revoke the citizenship of all persons deported under the previous Order."[25] Whether the accompanying press release promised restoration or withheld it, the Order's own language is the concession: "citizenship" was a status that existed, that could be revoked, and that the government felt compelled to address after the war. You cannot revoke a status that does not exist.

[25] John G. Diefenbaker, "Order-in-Council re Deportation of Japanese" (Working Brief on P.C. 7355, 7356, and 7357), Diefenbaker Canada Centre Archives, The Canadian Bill of Rights Collection, Digital Exhibit File.

- **Evidentiary significance.** Restoration is only intelligible as a concept if the thing restored pre-existed the interruption. You cannot restore what was never lost; you cannot withhold restoration of what never existed. A status born on January 1, 1947 could not have been "lost" in 1945, could not have been "revoked" by P.C. 7356, and could not be "restored" — or refused restoration — twenty-three days into its existence.
- The government's only remaining move is to say the status was "Canadian nationality" rather than "citizenship" — but that is the same shell game the 1921 Act foreclosed. The Canadian Nationals Act, 1921 declared "Canadian nationals" and "Canadian citizens" synonymous, making the two statuses legally interchangeable (see Part IV-A, Simultaneous Statuses). The government treats "British subject," "Canadian national," and "Canadian citizen" as identical when it benefits the state, and as distinct when it does not. That alternation is the shell game — and the 1921 Act closed it.

How can citizenship be cancelled in 1945 if it did not exist until 1947? It cannot.

D. The Political Motivations

King's 1946 Act served multiple political purposes:

1. **Racial conviction.** King's racial convictions were not incidental to his citizenship policy. In 1908, as Deputy Minister of Labour, he told British authorities that "Canada should remain a white man's country" — the same man who, thirty-seven years later, would strip Japanese Canadians of their status, deport them, and then fix a start date that conveniently

erased them from the citizenship record (see Timeline, 1908). The myth was not a legal theory. It was a racial project dressed in statutory clothing.

2. **A crime against humanity?** Following the atrocities of the Second World War, Article 6(c) of the London Charter of the International Military Tribunal (August 8, 1945) — the Nuremberg Charter — declared the deportation of a state's own civilian population a "crime against humanity." The Judicial Committee of the Privy Council upheld the deportation of Japanese Canadians on December 2, 1946. Nine days later, on December 11, 1946, the United Nations General Assembly affirmed the Nuremberg principles. Twenty-one days after that, on January 1, 1947, the 1946 Act came into force — creating, on the government's account, a Canadian citizenship that had never before existed. The legal consequence is stark. If the deportees were Canadian citizens, their deportation was a crime against humanity. If citizenship did not exist before January 1, 1947, the deportees were never citizens — and the deportation was, in law, no such crime. This memorandum makes no allegation that the 1946 Act was designed to achieve this consequence. It does not need to. The Act's commencement date had the effect of rendering the deportation of 3,964 Japanese Canadians — including 700 children born in Canada — legally incapable of being a crime against humanity, because the deportees were, on the government's account, never citizens at all. Whether the alignment was intended or incidental, the record raises a question that deserves an answer: was January 1, 1947, chosen to reflect the truth — or to foreclose it?
3. **Post-war PR.** The 1946 Act presented a politically motivated "feel good" post-war plan, giving returning soldiers and the public something new to celebrate.
4. **Immigration control.** The Act provided a convenient way to separate and categorize the flood of European immigrants from the supposed "true" Canadians already here.
5. **Political positioning.** After the extraordinary service of Chinese Canadians in WWII, King was forced to give them the vote.

E. The 1947 Ceremony: The Crown's Own Distinction Between Creating and Confirming Citizens

Late in December 1946, prior to the ceremony, Justice Patrick Kerwin, then Acting Chief Justice of the Supreme Court of Canada, warned Prime Minister King's advisors that there should be no *de novo* cases introduced into the national ceremony, as it would not be appropriate for an actual court naturalization. King's closest advisor, Under-Secretary of State Dr. E.H. Coleman, wrote a note strongly agreeing with the Court's opinion. King overruled them both and proceeded with his own plans.

As a compromise, Chief Justice Thibaudeau Rinfret devised a two-track ceremony. The first track would present "proof of citizenship" certificates to a hand-picked group of 13 long-time Canadians — plus a 14th, the Prime Minister himself. The second track would administer the oath of allegiance to 12 immigrants who had been vetted for naturalization. The distinction was deliberate and documented.

On the day of the ceremony, Paul Martin, the Secretary of State, opened the proceedings with a lengthy speech, concluding:

> "...It is therefore a great and signal honour to present to you at this inaugural ceremony a group of people who desire certificates in proof of their Canadian Citizenship, and who have re-affirmed a loyalty long established... I present them to you to receive visible and legal proof of what their lives have confirmed, a certificate in proof of their Canadian Citizenship."

Chief Justice Rinfret, presiding that day, then addressed the affirmed group:

> "What you now do here, is for all of you, no new thing but rather a re-affirmation of what your lives have been..."

He did not administer an oath of citizenship to any member of this group. There was no need for them to swear loyalty to become the citizens they already were.

Instead, these "old" Canadians stood to receive their certificates of proof — including Prime Minister King, who was given Certificate #0001. This had caused controversy in King's inner circle. Dr. Coleman, the Under-Secretary of State responsible for naturalization, honours, and citizenship, had cautioned King about his involvement by citing a warning from Robert G. Robertson, Secretary to the Prime Minister, who said:

> "...being a contravention of the true spirit and purpose of the Act... It is a possibility you may wish to have in mind since this occasion should be particularly free of any possibility of bickering or misunderstanding."

Coleman's warning is the state's own administrator conceding that the ceremony was political theatre, not legal procedure.

After the affirmed group received their certificates, 12 additional people were introduced. The official planning schedule for the day's ceremony records:

> "The Secretary of State presents new candidates who are receiving citizenship for the first time."

Chief Justice Rinfret then delivered an address to this group — immigrants who had recently been vetted for naturalization — about the nature of the Oath of Allegiance. Once he had administered the oaths, these brand-new citizens received actual Certificates of Canadian Citizenship.

The significance. On January 3, 1947, Chief Justice Rinfret administered the oath to 12 persons and affirmed the citizenship of Mackenzie King and 13 others. The Crown's own ceremony distinguished between creating citizens and confirming them — the planning schedule recorded that the Secretary of State would "present new candidates who are receiving citizenship for the first time," while the Chief Justice told the affirmed group their act was "no new thing but rather a re-affirmation of what your lives have been."

That distinction — between "swearing in" and "affirmation" — is the Crown's own admission that citizenship pre-existed the Act. The same distinction operated twenty-seven years earlier. On August 17, 1920, the Dominion Immigration Department announced the issuance of certificates of Canadian citizenship. The *Victoria Daily Times* reported:

"The certificate is in the form of a small card bearing on one side a photograph of the individual to whom it is issued and giving such information as the name, date of birth and birthplace of the

holder. All that is necessary for an applicant to do to secure a certificate is to supply the Department with a small photograph and proof of Canadian citizenship."[26]

The state was issuing certificates in proof of Canadian citizenship in 1920 — twenty-seven years before it claims to have created the status. The 1947 ceremony was not the origin of the practice. It was its continuation.

[26] The Victoria Daily Times, "Canadian Citizenship Certificates Are Issued," Victoria, British Columbia, August 17, 1920, p. 1

PART XVIII — THE WAR BRIDES AND THEIR CHILDREN

A. The 1945 Order in Council

P.C. 1945-858 gave the foreign-born children of Canadian soldiers "the same status as the father." This necessarily presumes the father held a specific, identifiable, transmissible status.

B. The War Bride Pamphlet

As the war brides arrived at Pier 21 in Halifax, they were given a pamphlet by government authorities titled *Dock to Destination*, which said:

> "As soon as the ship docks, Canadian immigration officials will come aboard. These men will complete the formalities for your entry into Canada which automatically makes you a Canadian citizen."

C. Mackenzie King's Speech

In August 1946, King addressed the war brides on board their transport ship from England, the RMS *Queen Mary*, telling them they were "Canada's newest citizens."[27] This statement is difficult to reconcile with his subsequent implication, on January 3, 1947, that he was Canada's first citizen — thereby marking the commencement of Canadian citizenship. The inconsistency suggests deliberate equivocation: toward the war brides in 1946 and toward Canadians in 1947. It was apparent then, and remains apparent now, that Canadian citizenship, and the legal rights attaching to it, existed before 1947. Nor was the language of citizenship exceptional.

The state's systematic messaging was already standard practice by late 1944. The Canadian Army Newsreel dated December 9, 1944 — titled "'A way to a new life' for war brides" — filmed and broadcast the departure of soldiers' wives and children as they began their journey by train to British ports.[28] A companion newsreel from March 1, 1944, greeted the arrivals, its archival description recording that "a Canadian Army Newsreel welcomes Canada's newest citizens."[29] The Crown utilized its military communication apparatus to film, broadcast, and celebrate the migration of these families as a national integration — long before the statutory codification of 1947.

The language was not confined to Canadian state media. A British Pathé newsreel filmed the arrivals in Montreal in 1944, its narrator observing: "...a new life awaits these mothers and their children who are to become Canadian citizens."[30] An independent British newsreel company

used the term "Canadian citizens" as ordinary public language — unremarkable, unqualified, and three years before the supposed genesis. The status was not a novelty awaiting statutory creation; it was the everyday vocabulary of the war years.

It is problematic, therefore, to accept that a sitting Prime Minister was unaware of the existence of Canadian citizenship when, months earlier, he had assured the war brides — verbally and in writing — that they were Canadian citizens. Nor could the war brides reasonably have questioned their status. Yet in 2006, the federal government compelled a war-bride child into judicial review, asserting that he had never been a Canadian citizen — consistent with the 1947 start date.[31]

The case was that of Joseph Taylor, born in England in 1944 to a Canadian soldier, who had landed in Canada with his mother in 1946. Before the Federal Court, Justice Luc Martineau pressed the Crown on the reach of its argument: if he accepted that the son had no citizenship, "the same would apply to all those like Taylor and his mother, who came to Canada as spouses and dependents of Canadian servicemen who served overseas in the Second World War." Counsel for Taylor then produced a letter from a former federal immigration minister, Joe Volpe, stating that war brides had in fact been granted citizenship in 1947 under the Act. Crown counsel conceded the letter was "not correct in law" because it was not a statute. Martineau answered: "No, but it answers my question."

The exchange is the government's own position measured against itself. A former minister of the Crown had assured the public that the war brides were citizens; the state's only reply was that the assurance was not a statute — not that it was untrue. That concession, made from the bench, is as good as any in this record: the 1947 narrative cannot survive contact with the government's own contemporaneous promises.

[27] Mackenzie King, address to war brides aboard the RMS Queen Mary, August 1946, as cited in the war-bride pamphlet distributed by the Canadian government, 1946.

[28] CBC Archives, "'A way to a new life' for war brides," Canadian Army Newsreel, December 9, 1944, https://www.cbc.ca/player/play/video/1.3628024.

[29] CBC Archives, "War brides land in Canada," Canadian Army Newsreel, March 1, 1944, https://www.cbc.ca/player/play/video/1.3628023.

[30] British Pathé, "British War Brides Arrive In Canada (1944)," newsreel, Montreal, 1944, https://www.youtube.com/watch?v=O-PFVwsNuAk

[31] *Taylor v. Canada (Minister of Citizenship and Immigration)*, 2006 FC 1053, (2006) 299 F.T.R. 158 (F.C.) (Martineau J.), rev'd *Minister of Citizenship and Immigration v. Joseph Taylor*, 2007 FCA 349, [2008] 3 F.C.R. 324; the May 2006 hearing and the Volpe-letter exchange are reported in Gerry Bellett, "Judge asked to rule on status of war brides, kids," *The Vancouver Sun*, May 31, 2006. The same position was advanced against another war-bride child in *Scott v. Canada (Attorney General)*, T-418-12 (F.C.) (Respondent's Memorandum of Fact and Law, filed March 25–26, 2013).

PART XIX — THE PASSPORT AND CONTEMPORARY CONFIRMATION

The Canadian passport is an official and legal government document issued under the Crown prerogative — which is itself derived from the common law. On the photo page of every Canadian passport, the Minister of Foreign Affairs states that the nationality of the holder is "Canadian." The inside back cover includes a warning to Canadians with dual citizenship:

"Beware:... Your Canadian citizenship may not be recognized by the country of your other nationality..." The expression "your other nationality" has the effect of making Canadian citizenship a synonym for Canadian nationality. By contrast with the former Citizenship Act, the current Act does not define Canadian nationality. Yet the passport — the Crown's most widely circulated official instrument — confirms that citizenship and nationality remain synonymous in current law.

The royal prerogative over passports is a common-law power, not a statutory grant. The Canadian Passport Order affirms that "the royal prerogative over passports can be exercised by the Governor in Council or the Minister on behalf of Her Majesty in right of Canada" — a power rooted in the common law, not in the Citizenship Act. The Crown exercised that prerogative for decades before 1947, issuing distinctly Canadian passports that identified bearers as Canadian citizens and nationals. The passport of Koozma Tarasoff (1931) records "Naturalized in Canada, 3rd September 1912" as the operative status; the passport of Peter Masten Skewitt (1945) records "British subject by naturalization, Canadian Imperial Certificate No. 37334, Series E." These were not statutory inventions. They were exercises of the Crown's common-law authority to identify its citizens.

The implication is decisive. If the Crown could identify Canadian citizens by prerogative power before 1947, then citizenship was recognized by the common law itself — not created by statute. The "creature of statute" doctrine collapses: the prerogative knew the status before Parliament named it.

PART XX — THE 111,000 WAR DEAD

A. The Question

If citizenship came into existence for the first time in 1947, then none of Canada's WWI and WWII war dead were citizens. For the Chinese Canadian veterans who made the ultimate sacrifice, they were and remain "stateless registered aliens." Whoever is buried in the Tomb of the Unknown Soldier is a foreigner.

B. The Government's Own Words

On Remembrance Day, Canadians are told the fallen were "Canadian heroes." Cenotaphs across Canada refer to them as "citizens." The Department of Defence's *Fighting for Canada* (2005) called the Asian WWI soldiers "devoted Canadian citizens." Prime Minister Trudeau said at Vimy Ridge that they "fought for the first time as citizens of one and the same country."

The government's own death certificates recorded "Canadian" in the citizenship box. The government's own wartime publication (*Battle of Brains,* 1942) told soldiers their very being depended on their Canadian citizenship. The government's own conscription statutes compelled them to serve as Canadian citizens.

Yet today, the same government says they were never citizens. *De facto* and *de jure*, Canadian citizenship existed nonetheless.

C. The Absurdity

A WWII Canadian soldier who died during the war now has the right to confer Canadian citizenship on their children and grandchildren. But that soldier is not recognized as having ever been a Canadian citizen.

The state accepts the soldier as a source of citizenship for others while denying the soldier possessed citizenship themselves. This is legally incoherent and morally intolerable.

D. The Unequal Treatment

According to IRCC, a Canadian soldier killed while serving abroad in WWII was not a Canadian citizen. Had that same soldier survived the war and returned home on the troop ships in 1945 or 1946, he would have become a Canadian citizen automatically on January 1, 1947 — his pre-1947 birth in Canada the qualifier. The government's position is thus that the fortunate ones who returned home were citizens, but their dead comrades were not.

Consider two identical twin brothers, John and Henry. Born in Canada, they enlisted together and sailed overseas on the same troopship. During the war, a cannon blast killed Henry instantly and, in the same moment, tore off John's leg. John survived, was shipped home, and lingered until January 2, 1947 — one day after the new Act came into force. He died a Canadian citizen.

Henry? Same mother, same home, same birthing bed, same age. But he is not a citizen — not then, not now. The best Henry received was a tombstone with a maple leaf on it.

John died a citizen. Henry died disenfranchised. They were twins in everything except the date of their death, and their acceptance or denial as citizens of Canada.

E. What We Ask

We ask for declaratory recognition that pre-1947 Canadian citizenship existed.

PART XX-A — DE JURE AND DE FACTO: CITIZENSHIP IN LAW AND IN LIFE

A. The Distinction

Citizenship is both a legal status and a lived reality. *De jure* citizenship is the status conferred and recognized by law — the statutory, constitutional, and judicial record assembled in Parts IV through XII. *De facto* citizenship is citizenship in fact — the enjoyment of its incidents, the exercise of its obligations, and the understanding of the people themselves. The two are not rivals. They are corroborating witnesses. When both point the same way — when the law and the life of the nation agree — the case is complete.

The *de jure* record is already established: the Immigration Act, 1910 defined "Canadian citizen"; the Canadian Nationals Act, 1921 declared "Canadian national" and "Canadian citizen" synonymous; the conscription statutes, the Orders in Council, the censuses, the passports, and the judgments of the Supreme Court all treated Canadian citizenship as a rights-bearing legal status. That is the law. What follows is the life.

B. The Public Record: The State's Own Wire Service, 1940

Seven years before the supposed genesis, the *Canadian Press* reported from Ottawa: "Canadian citizenship has become popular among aliens who, before the war, were in no hurry to change their allegiance."[32] Naturalization officials reported applications at the rate of nearly 2,000 a month, processed through 375 Canadian courthouses, with certificates issued by the Department of the Secretary of State.

The state's own wire service used "Canadian citizenship" as a settled term. The state's own machinery processed it. Aliens sought it, judges granted it, and the department administered it — seven years before the date the government now insists marked its creation. The machinery of citizenship ran because the status existed. Some of those newly naturalized citizens then enlisted and fought as Canadian soldiers. Some of them died. Under the government's 1947 narrative, their citizenship — the status they had sought, sworn to, and served for — never existed. They died for a country that now denies they were ever its citizens.

C. The Minister's Own Words, 1946

In October 1946, as the citizenship bill was before Parliament, Secretary of State Paul Martin explained the government's purpose to the press. His words are an admission:

> "it is the feeling of the government that it is not in keeping with our position as a nation that the residents of this country are unable to describe themselves as Canadian citizens."

The complaint was descriptive. Canadians could not describe themselves as Canadian citizens — not because the status was absent, but because the vocabulary of the law had not caught up to the reality. Martin did not say Canadians were not citizens. He said they were "unable to describe themselves" as such. The bill was "a symbol of the creation of a national feeling in this country" — a symbol, not the creation of the status itself.

And Martin confirmed the layering: "Native-born Canadians will all remain British subjects." The bill did not end British subjecthood; it organized the relationship between the two statuses.

D. The Myth Meets the Public Record, 1981

Thirty-four years after the supposed genesis, a citizenship judge in Toronto told a citizenship ceremony that "Canadian citizenship started only in 1947." The *Toronto Sun's* Marcus Van Steen corrected him in print:[33]

> "The Judge was apparently thinking of the Citizenship Act of 1947, but this was passed to clarify Canadian citizenship, not to create it."

Van Steen listed the incidents the judge had overlooked: Canadians "voted for members of the Canadian Parliament, carried Canadian passports, and many of them fought in two world wars under the Canadian flag." He pointed to Sir Wilfrid Laurier, Charles Mair, and Sir John A. Macdonald — all of whom "were talking about Canadian citizenship long before 1947."

The episode is evidence twice over. First, it confirms the *de facto* record: the public understood — and a columnist insisted — that Canadians were citizens before 1947, exercising the incidents of citizenship. Second, it exposes the mechanism of the myth: the 1947 narrative did not arise organically from the historical record. It had to be taught, repeated, and imposed — here, by a

judge at a citizenship ceremony, thirty-four years after the fact. The orthodoxy is not the record's conclusion; it is the record's suppression.

E. Synthesis: The Two Records Converge

De jure, the statute book, the courts, and the Crown's instruments recognized Canadian citizenship before 1947. *De facto*, the state's own machinery processed it, the minister's own words presupposed it, and the public's own understanding asserted it. The two records converge on a single conclusion: Canadian citizenship existed before January 1, 1947, and the 1946 Act codified what was already real.

The war dead are the meeting point of both records. In law, they were Canadian citizens under the 1910 Act and the 1921 Act. In fact, they enlisted as Canadians, fought as Canadians, and were mourned as Canadians — with "Canadian" recorded on their death certificates by the state itself. *De jure* and *de facto*, they were citizens. The government's 1947 narrative asks us to believe that the law and the life of the nation were both wrong. The public record says otherwise.

[32] "Many Aliens Now Seeking Citizenship," Canadian Press, March 7, 1940.

[33] Marcus Van Steen, "Citizen chaos," The Toronto Sun, January 19, 1981.

PART XXI — THE "STATUS" OBJECTION: CONCEDING THE FACT, DENYING THE CONSEQUENCE

A. The Objection Stated

Despite being confronted with the archival record — the conscription proclamations, the Orders-in-Council, the head-tax litigation, the wartime pamphlets distributed to war brides — the government maintains the *legal status* of Canadian citizenship did not exist until the 1946 Act came into force.

If this is allowed to stand, everything else the government concedes is rendered meaningless. It would be an escape hatch to leave the false historical record intact.

B. The Proper Test: Status Is Proven by Consequence, Not by Definition

The government's argument rests on a category error. It assumes that legal status flows only from statutory definition — that a status does not exist in law unless a legislature has taken the trouble to define it in so many words. This is not, and has never been, the manner in which the common law operates.

Legal status is a matter of legal *consequence*, not lexical *declaration*. The common law recognized the status of landlord and tenant, husband and wife, principal and agent, guardian and ward, for centuries without benefit of a statutory dictionary defining any of them. Status is not created by definition; it is evinced by the effects the law attaches to it. The question is never "Did the statute book contain the word?" but rather "Did the law treat persons as holding that status?"

In the civilian tradition, the same principle holds with even greater force: Quebec's civil law treats personal status (*état civil*) as a foundational attribute of the person — inherited from

Roman law, antecedent to codification, and regulated by the *Civil Code* rather than created by it. If even the civilian system, which prizes codification above all, recognizes status as something the law acknowledges rather than invents, the Crown's insistence that citizenship required a statutory definition is all the more untenable.

Applied to citizenship, the test is therefore: Did the law, before 1947, impose obligations and confer rights upon persons because they were Canadian citizens? The evidentiary record answers in the affirmative, overwhelmingly and repeatedly.

C. The Record: Legal Consequences Flowing from Citizenship Before 1947

(i) *Shin Shim v. The King* (1938)

In *Shin Shim v. The King* (1938), the Supreme Court of Canada held that a Canadian-born Chinese woman was a Canadian citizen by birth under the Immigration Act, 1910 — a status that exempted her from the *Chinese Immigration Act's* exclusion regime. This was not a rhetorical flourish; it was a determination of legal status with direct legal consequences. Nine years before the 1946 Act, the highest court in the land adjudicated the citizenship status of individuals and enforced its incidents.

(ii) Section 41 of the Immigration Act, 1910 (as amended 1919)

Parliament declared that Canadian citizens were immune from deportation. Immunity from removal is not a courtesy; it is a legal right, enforceable against the executive branch. The provision operated on the premise that citizenship was a settled status whose holder stood on different legal ground from the alien. A right enforceable in law is a legal status.

(iii) Conscription in Two World Wars

The text of the *Military Service Act*, 1917 and the *National Resources Mobilization Act*, 1940 legally bound "British subjects resident in Canada." However, the state's political and ministerial execution of these acts treated the duty as an incident of Canadian citizenship. This is anchored by the 1916 declaration of Minister of the Interior William James Roche, who affirmed to incoming settlers that military conscription would apply to "Canadian citizens only" — and by the Crown's own wartime machinery: the 1942 attestation paper required every recruit to state his citizenship, and the state's own publication, *Battle of Brains*, told soldiers that their very being "is dependent upon your Canadian citizenship." The state invoked the shared imperial label to assert legal jurisdiction but relied on the local reality of domestic citizenship to justify the ultimate sacrifice.

(iv) Orders-in-Council P.C. 7318 (1944) and P.C. 1945-858

By these Orders-in-Council, the executive transmitted Canadian citizenship to dependents and to children born abroad. Executive action of this kind presupposes a status capable of transmission. One cannot transmit that which does not exist. The government cannot rely on the fiction that it was moving property it did not hold.

(v) The War Bride Pamphlet (1946)

Months before the *Canadian Citizenship Act* received Royal Assent, the Government of Canada distributed a pamphlet to incoming war brides informing them that completing immigration formalities would "automatically make you a Canadian citizen." The executive branch of the

Crown told these women, in terms, that they were becoming citizens — not that they would become eligible for a status to be created at some future date. The government's own contemporaneous representation to the public confirms the understanding of the time.

(vi) The British Pathé Newsreel (1944)

The newsreel narration — "a new life awaits these mothers and their children who are to become Canadian citizens" — was broadcast to theatres in Britain and Canada. It was not a government pamphlet or a ministerial speech; it was a commercial newsreel using the term because audiences understood it. The Department of Justice's "colloquialism" defence requires the Court to believe that the state, the press, and the public all used "Canadian citizen" loosely and mistakenly for decades. The 1920 certificate program, the 1944 newsreel, and the 1946 war-bride pamphlet form a consistent institutional pattern — not isolated slips.

D. The Objection Proves Too Much

The fatal difficulty with the Crown's position is that it proves too much. If citizenship carried no legal status before 1947, then:

- the state had no lawful basis to conscript citizens in two world wars;
- the state had no lawful basis to distinguish between deportable aliens and non-deportable citizens under section 41;
- the Supreme Court erred in *Shin Shim* in according exemption on the basis of birth-status; and
- the executive acted ultra vires in purporting to transmit a status that did not exist.

Each of these propositions is untenable. The state cannot have acted arbitrarily in conscripting, protecting, and distinguishing among millions of persons over the course of eight decades on the strength of a mere word. The only coherent reading of the record is that the law was enforcing a status that existed. Either citizenship had legal effect — and therefore legal status — or the state's treatment of citizens was legally baseless. The former is the only construction consistent with the rule of law.

E. The Terminology Objection Is Circular

Finally, the government's insistence that the *term* "citizenship" was not statutorily defined until 1947 proves nothing. Absence of definition is not absence of status. The *Interpretation* Act preserves concepts and meanings that predate codification; the common law abounds in statuses that functioned for centuries without statutory articulation. To insist that a status cannot exist until a legislature defines it is to invert the relationship between law and language. The law acts first; the lexicographer follows.

F. Conclusion

The government wants you to believe that the Canadian state conscripted, taxed, sheltered, and distinguished among millions of people on the strength of a word that carried no meaning in law. It asks us to accept that the executive transmitted a status it did not possess, that the courts adjudicated a status they had invented, and that successive governments deceived their own citizens and soldiers for generations.

The record says otherwise. The law spoke, and it spoke of citizens. The status was real because its consequences were real. Definition followed effect — as it always does.

PART XXII — CONCLUSION AND RECOMMENDATIONS

A. Findings

The evidentiary record is complete, consistent, and constitutionally grounded. A rigorous historical audit reveals that every single Prime Minister from Confederation to Mackenzie King recognized the status of Canadian citizenship, while actively operating through the legal vocabulary and functional reality of the Canadian citizen. The state's own instruments — from Monck's 1867 proclamation to the 2013 *Manitoba Metis Federation* concession — uniformly recognize Canadian citizenship as a pre-existing, rights-bearing status. The 1946 Act was a consolidation, not a genesis.

The "either/or" framing — British subject or Canadian citizen — is false. For those who qualified, the two statuses coexisted from Confederation forward. For those who did not qualify as British subjects — Chinese Canadians, Indigenous peoples — Canadian citizenship stood alone, rooted in the common law of allegiance and the constitutional order. The government's binary fails on both sides.

The international dimension completes the record. From Canada's seat as a founding Member of the League of Nations in 1920, to its autonomous treaty-making — the Halibut Treaty of 1923 and its successors — the international community dealt with Canada as a sovereign state possessing citizens, decades before the supposed genesis.

The civil law tradition reaches the same conclusion by deduction: citizenship is an attribute of juridical personality, protected by acquired rights and public order, and the 1946 Act was declaratory, not constitutive. Two legal traditions, one conclusion.

B. The Nail in the Coffin — Pre-1947 Citizenship

The chain of statutory incorporation is explicit and documented:

The Immigration Act, 1910 defined "Canadian citizen" — every person born in Canada who had not become an alien, every British subject with Canadian domicile, and every person naturalized under Canadian law.

The Canadian Nationals Act, 1921 did not invent a new status. It adopted that definition *by reference*. The minister who drafted it, Attorney General Charles Doherty, explained the mechanism to the House on March 10, 1921: "We have... taken everybody who is a Canadian citizen under [the Immigration Act] and recognized him or her as a Canadian national."

The Senate confirmed the terms were interchangeable. Sir James Lougheed: "there is no distinction." Napoléon Belcourt: "I do not think there is the slightest difference in the meanings of these terms; I think they are synonymous."

The government's own published explanation in 1947 — written by the Canadian Citizenship Branch of the Department of the Secretary of State — confirmed that the 1921 Act "accepted as the basis of Canadian nationality for the act the definition of 'Canadian citizen' as given in the Immigration Act."

The war dead were therefore Canadian nationals under the 1921 Act. Because "national" and "citizen" were synonymous — by the draftsman's own explanation, by the Senate's confirmation, and by the government's own subsequent publication — they were Canadian citizens with legal rights under the same laws.

Case closed

C. Recommendations (Because Truth Matters)

1. **Parliament** must pass an official declaratory resolution recognizing that Canadian citizenship, and the legal rights associated with that citizenship, existed before January 1, 1947. The resolution must do more than recognize a date. It must affirm the nature of the status: that Canadian citizenship is a right, inherent in the constitutional order from Confederation, not a privilege granted by statute in 1947. That is the only framing that honours the dead, protects the living, and forecloses the dangerous precedent. Anything less leaves the door open for a future government to decide who is, and who is not, Canadian.
2. **The Prime Minister, Citizenship Minister, Heritage Minister, and Attorney General of Canada should publicly acknowledge the historical record** — including the government's own 1945 diplomatic admission, 1947 published explanation, 2012 internal legal advice, and 2022 cabinet statement — and commit to aligning official communications and narratives with that truth.
3. **The 111,000 Canadian war dead of the First and Second World Wars should be formally recognized as the Canadian citizens they were**, along with the Chinese and Japanese Canadians born before 1947, who were citizens at birth and never "stateless registered aliens."
4. **The historical record should be corrected** to reflect that the 1946 Act — properly titled *An Act respecting Citizenship, Nationality, Naturalization and Status of Aliens* — was a consolidation and codification of existing law, as Paul Martin Sr. himself stated in the House.
5. **Canadian museums operating as Crown corporations** — notably Pier 21 (the Canadian Museum of Immigration) and the Canadian Museum for Human Rights — must correct their content to reflect a more enlightened, truthful beginning of Canadian citizenship: a Living Tree planted with Confederation. The current January 1, 1947, start date, featuring Mackenzie King as Canada's first citizen, cannot supersede the citizenship of our war dead.
6. **Federally funded heritage and educational organizations,** such as Historica Canada and *The Canadian Encyclopedia*, should be asked to reflect the same truth in their materials.

7. **IRCC should align its certificate practices with this recognition**: reflecting the appropriate pre-1947 effective date where applicable.

Together, these measures would restore the honour owed to our war dead and to generations of Canadians whose citizenship was erased by a false narrative — a wrong this Parliament has the power to right. Our fallen WWI and WWII soldiers, including the pre-1947 naturalized and Canadian-born Japanese and Chinese Canadians, all deserve to be recognized as having been the Canadian citizens they were.

D. Closing

If there were no Canadian citizens during WWI and WWII, then Canadians did not liberate Holland. Canadians would not have served in either world war. The 111,000 war dead would not have been Canadian citizens.

Yet they were citizens — in common law, in statute, and in the civil law; *de facto* and *de jure* — and they deserve to be recognized as such.

To reiterate, **this recognition carries no cost, creates no new derivative claims, and requires no new class of beneficiaries**. All derivative claims have been resolved by previous Lost Canadian legislation, which has captured everyone except those who died before 1947. This is a matter of Honour of Canada, Honour of the Crown, and historical truth.

It is also about "Standing on Guard for Thee." It's about truth and setting the record straight. As Maya Angelou so aptly stated, "*No man can know where he is going unless he knows exactly where he has been and exactly how he arrived at his present place*." Canadian human rights activist June Callwood was direct: "*Once you know about the abuse you become part of it*." President Kennedy's words to U.S. legislators during the civil rights movement apply with equal force to Canadian Parliamentarians today: "*Those who do nothing are inviting shame. Those who act boldly are recognizing a right, as well as reality*."

E. Notes for Parliamentarians

- Post-1947, the government — due in large part to Mackenzie King — never challenged the myth that Canadian citizenship began on January 1, 1947, with King being Canada's first citizen (this was purely symbolic as Chief Justice Rinfret made clear that day). But then, King was the head of the government, and he led the charge in promulgating that myth.
- Canadian citizenship didn't need a statute in 1947 (although it was well documented in previous law, such as the 1910 Immigration Act). Citizenship also subsisted in the common law of allegiance, in the constitutional structure grounded in the B.N.A. Act preamble, and in judicial recognition — *Shin Shim* (1938) found it without a creating statute. It lived in the hearts and minds of the soldiers who fought — and of every Canadian they fought for (which is the very definition of *de facto* citizenship). The 1921 Canadian Nationals Act was declaratory, not constitutive: it presumed the status rather than creating it.
- British subject status did not disappear in 1947. Canadians were simultaneously British subjects and Canadian citizens from Confederation forward. The two labels described

different facets of the same allegiance: membership in the Canadian body politic, and membership in the wider imperial community. British subjecthood persisted until February 15, 1977 — and the constitutional identity completed on April 17, 1982. The government's "either/or" framing — British subject *or* Canadian citizen — is false. It was never either/or. It was both. As R.B. Bennett said in the House of Commons on February 15, 1929: "We are British subjects; we are Canadian citizens."

- If civil law has no place in citizenship — or a subordinate one — what place does Quebec have in Canada? Draw that line, and you split the country. Additionally, by dismissing civil law, the government concedes that Quebecers hold their citizenship on different terms from other Canadians. Can the government afford that admission?
- Do not mistake silence in the statute book for the absence of law. Silence is not negation, and statute is not the whole of law.
- By treating 1947 as the day Canadian identity was invented rather than the day it was codified, Parliament would be telling Canadians that truth doesn't matter.
- Erasing the historical deep roots of our citizenship reduces the story of Canada from a profound, multi-generational journey into a mere paperwork exercise of the modern state.
- Keeping 1947 as the start date severs the legal and emotional bond between modern Canadians and their ancestors. It decides whether our war dead fell as Canadians, as subjects, or stateless registered aliens. It orphans those who came before us: the men who fell at Vimy become foreigners of their own nation; the Chinese Canadians remain as aliens in their own land; and pre-1947 Canadian-born Japanese Canadians who were deported were stripped of a status they never had. To maintain 1947 is to embrace a false narrative — one advanced by a Prime Minister whose policies were rooted in racism and self-promotion. Canada can and must do better. Our soldiers gave their lives fighting for our rights. The least Parliamentarians can do today is to recognize these heroes as the citizens of Canada they always were. You are now their voice, for the dead cannot speak.
- If citizenship is a privilege, not a right, no Canadian — not even Parliamentarians — holds it securely. It is easy to dismiss a name on IRCC's suspended list as a stranger. But those names belong to real people — fellow Canadians. Tomorrow, IRCC could target you, or your child. When a Minister suspends a hundred citizens by email, remember this: the only difference between them and you is whose name was on the list.

This memorandum began and will end with the words of Prime Minister Carney: "*The protection of citizens is the most fundamental responsibility of government*." The pages between invite his government — and every government — to be measured against that standard.

He also says that "we are a stable, reliable partner — in a world that is anything but." Not so for citizenship.

CANADA will never be CANADA STRONG until it is also CITIZENSHIP STRONG.

Respectfully submitted,

Don Chapman Author, *The Lost Canadians: A Struggle for Citizenship Rights*; A leading authority on pre-1947 Canadian citizenship; force behind 12 Parliamentary Bills and four judicial reviews; recipient of the Meritorious Service Cross (civil division); recipient — Senate of Canada 150th anniversary medal.

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Standing on Guard: A message on Value and National Purpose

The exhaustive historical, judicial, and administrative record assembled in this Memorandum leads to a single, inescapable conclusion: Canadian citizenship did not begin on January 1, 1947. It's the date it was codified.

To maintain the orthodox narrative of a 1947 genesis is to defend a profound legal and moral absurdity. It puts Canada squarely on board with racists. It forces the Crown to continue claiming that the 111,000 soldiers who fell in the two World Wars were legal ghosts; that the state possessed a lawful right to strip a non-existent status from Japanese Canadians in 1945; and that the explicit backdating deployed for Newfoundland and Bill C-3 was conjuring fictions out of a legal vacuum.

Every procedural anomaly that continues to plague modern Canadians—including the abrupt suspension of approximately 100 citizens by email this past June—is a direct symptom of a parallel vacuum of understanding within the halls of Parliament. When lawmakers treat citizenship crises as transactional, riding-specific grievances rather than structural violations of our national purpose, they reduce an unassailable constitutional right into a temporary legislative privilege. What you do not know about citizenship can hurt you, your loved one, and your constituents.

The blindness of our past has fostered a troubling apathy among everyday Canadians. Dr. Peter Bryce was a hero with profound resolve. Yet who among you even knew his name, let alone his story?

I can attest to the following firsthand: when a Canadian learns that someone's status is being questioned, the reflexive reaction is to defend authority and blame the individual: *"What did you do to deserve this?"* Conversely, Americans are far more likely to ask: *"What has the government done to you?"*

Raised on the comfortable narrative of *"peace, order, and good government,"* Canadians rarely question the system. They buy into the myth of unconditional national compassion. They'd be deeply shocked—and mostly disbelieving—to learn that their own country remains actively involved in forced family separation and state-engineered statelessness, not just in the past, but in the here and now. Canada prides itself on being a moral beacon of light to the world, yet Canadians and Parliamentarians alike remain uniquely blind to the country's ongoing and dark history.

Exposing these structural flaws is not an attempt to diminish Canada. It is a necessary intervention to make this country live up to its own professed ideals. We are our brother's

keeper—whether protecting the rights of Indigenous peoples or everyday Canadians. Those who do not understand history are bound to repeat it.

True reconciliation demands that we move past superficial political rhetoric and build an active, mission-oriented framework of accountability. When an injustice within the *Citizenship Act* is laid bare, the first instinct of a Parliamentarian must no longer be to check a riding map or defer to a bureaucrat. You must engage, learn, read the evidence, and act.

We must make the words *"To stand on guard for thee"* mean something much more than a singing talking point. It's how we're supposed to live.

This Memorandum takes Prime Minister Carney at his own word: *"The protection of citizens is the most fundamental responsibility of government."* Indeed, it is. Truth matters. Correcting the false narrative costs the Crown a footnote; resisting it ensures further decades of instability, administrative chaos, and litigation.

As Parliamentarians, you hold the exclusive legislative power to fix this profound historical wrong. Learn from Dr. Bryce and from the Indigenous Canadian horrors. It's never too late to do the right thing.

Think about that on Remembrance Day.